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CHAPTER 11

ACCESSIBILITY

SECTION BC 1101 GENERAL

1101.1 Scope. The provisions of this chapter and Appendices E and N shall control the design and construction of facilities for accessibility for individuals with disabilities.

1101.2 Design. Buildings and facilities shall be designed and constructed to be accessible in accordance with ICC A117.1 and this code.

1101.3 Special provisions for prior code buildings. The provisions of this chapter shall apply to alterations, including minor alterations but excluding ordinary repairs, and changes of use or occupancy to prior code buildings, portions of such buildings, and spaces within such buildings in accordance with Sections 1101.3.1 through 1101.3.5. Alterations within prior code buildings affecting an area containing a primary function shall comply with the requirements of Section 1101.4. This section shall not impose a requirement for greater accessibility than that which would be required for new construction, nor shall it reduce or have the effect of reducing accessibility.

Exception: The provisions of this chapter are not applicable to:

1. Group R-3 occupancies in buildings with first occupancy on or before March 13, 1991.
2. Group R-3 occupancies in buildings with first occupancy after March 13, 1991, and originally constructed in a single structure with fewer than four dwelling or sleeping units.

1101.3.1 Requirements based on change of occupancy or how a space is used. Accessible features and construction governed by this chapter shall be provided:

1. To the entire building, as if the building were hereafter erected, where a change is made in the main use or dominant occupancy of such building.
2. Throughout a space, including the immediate entrance(s) thereto, where an alteration is made that is considered either: (i) a change in occupancy classification of such space in accordance with this code, or (ii) a change in the zoning use group of such space in accordance with the *New York City Zoning Resolution*.
 - 2.1. Where the immediate entrance(s) to such space provides direct access to the sidewalk, such immediate entrance(s) shall be provided with an accessible route to the sidewalk. Where the immediate entrance(s) to such space are only through an adjacent space, such as a building lobby, such space shall be provided with an accessible route, through the adjacent space, to the sidewalk.
 - 2.2. Where elevator service is provided in the building, an accessible route shall be required to a rooftop, where prior to a change in use or occupancy, such rooftop was not intended for general public or occupant use.

1101.3.2 Requirements based on value of alterations. Accessible features and construction governed by this chapter shall be provided:

1. To the entire building undergoing alterations, as if the building were hereafter erected, where the value of alterations exceeds 50 percent of the value of the existing building.
2. To the portion of the building being altered, to the extent of the alteration, including minor alterations but excluding ordinary repairs, where the value of the alteration does not exceed 50 percent of the value of the existing building.

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- 2.1. Within buildings with first occupancies on or before March 13, 1991, bathrooms and powder rooms located in dwelling units in such portion being altered shall comply with this chapter or with prototype layouts established by rule.

1101.3.3 Directional accessibility signage. Directional signage shall be provided in accordance with Section 1111.2 at or in close proximity to inaccessible building entrances, inaccessible public toilets and bathing facilities, and elevators not serving an accessible route, indicating the route to the nearest like accessible element where such accessible element is provided, such that an individual with disabilities will not be required to retrace the approach route from the inaccessible element.

1101.3.4 Identifying accessibility signage. Identifying accessibility signage shall be provided in accordance with Item 5 of Section 1111.1 at accessible building entrances where not all entrances are accessible.

1101.3.5 Waiver of requirements. The commissioner may waive the requirements of this chapter for the alteration of prior code buildings, provided that such waiver would not significantly adversely affect provisions for health, safety and security and that equally safe and proper alternatives are prescribed and, that such waiver is based upon a specific finding that strict compliance with the requirement:

1. Would create an undue economic burden;
2. Would not achieve its intended objective;
3. Would be physically or legally impossible;
4. Would be unnecessary in light of alternatives which ensure the achievement of the intended objective or which, without a loss in the level of safety, achieve the intended objective more efficiently, effectively or economically; or
5. Would entail a change so slight as to produce a negligible additional benefit consonant with the purposes of this chapter.

1101.3.5.1 Application process. Each application for a waiver shall be made to the commissioner in writing, setting forth each requirement sought to be waived and the specific reason or reasons therefore. The commissioner shall determine, under all of the circumstances presented by such application, which of such requirements may appropriately be waived. The commissioner shall render such determination in writing, which shall set forth in detail, the commissioner's findings and conclusions with respect to each requirement sought to be waived. A copy of such written determination shall be forwarded to the applicant. Such written determination shall be filed with the department and shall be available for public inspection.

1101.3.5.2 Waiver recommendation. The Mayor's Office for People with Disabilities or its successor agency shall be consulted by and shall advise the commissioner concerning each application for a waiver under Section 1101.3.5.

1101.4 Alterations affecting an area containing a primary function. Where an alteration affects the accessibility to, or contains an area of primary function, the route to the primary function area shall be accessible. The costs of providing the accessible route are not required to exceed 20 percent of the value of the alterations affecting the area of primary function. The accessible route to the primary function area shall include toilet facilities and drinking fountains serving the area of primary function.

Exceptions:

1. This provision does not apply to alterations limited solely to windows, hardware, operating controls, electrical outlets and signs.
2. This provision does not apply to alterations limited solely to mechanical systems, electrical systems, installation or alteration of fire protection systems and abatement of hazardous materials.
3. This provision does not apply to alterations undertaken for the primary purpose of increasing the accessibility of a facility.
4. This provision does not apply to altered areas limited within a Type B or Type B+NYC dwelling unit.

**SECTION BC 1102
DEFINITIONS**

1102.1 Definitions. The following terms are defined in Chapter 2:

ACCESSIBLE.

ACCESSIBLE UNIT.

AREA OF SPORT ACTIVITY.

CIRCULATION PATH.

COMMON USE.

DETECTABLE WARNING.

DWELLING UNIT (ACCESSIBILITY).

DWELLING UNIT OR SLEEPING UNIT, MULTI STORY.

DWELLING UNIT OR SLEEPING UNIT, TYPE B.

EMPLOYEE WORK AREA.

FACILITY.

HALL CALL CONSOLE.

INTENDED TO BE OCCUPIED AS A RESIDENCE.

MULTILEVEL ASSEMBLY SEATING.

MULTISTORY UNIT.

PRIMARY FUNCTION AREAS.

PUBLIC ENTRANCE.

PUBLIC-USE AREAS.

RESTRICTED ENTRANCE.

SELF-SERVICE STORAGE FACILITY.

SERVICE ENTRANCE.

SERVICES.

SITE.

SLEEPING UNIT (ACCESSIBILITY).

TYPE B UNIT.

TYPE B+NYC UNIT.

VALUE (OF ALTERATIONS, TO DETERMINE REQUIRED ACCESSIBILITY).

VALUE (OF EXISTING BUILDING OR SPACE.

WHEELCHAIR SPACE.

**SECTION BC 1103
SCOPING REQUIREMENTS**

ACCESSIBILITY

1103.1 Where required. Sites, buildings, structures, facilities, elements and spaces, temporary or permanent, shall be accessible to individuals with disabilities.

1103.2 General exceptions. Sites, buildings, structures, facilities, elements and spaces shall be exempt from this chapter to the extent specified in this section.

1103.2.1 Specific requirements. Accessibility is not required in buildings and facilities, or portions thereof, to the extent permitted by Sections 1104 through 1111.

1103.2.2 Employee work areas. Spaces and elements within employee work areas shall only be required to comply with Sections 907.5.2.3.1, 1009 and 1104.3.1, and shall be designed and constructed so that individuals with disabilities can approach, enter and exit the work area. In addition, at least one but not less than five percent of fixed seating, tables, desks, and/or work surfaces, if provided, within employee work areas shall be located on an accessible route and comply with Section 902 (Dining Surfaces and Work Surfaces) of ICC A117.1. Work areas, or portions of work areas, other than raised courtroom stations in accordance with Section 1108.4.1.4, that are less than 300 square feet (27.8 m²) in area and located 7 inches (177.8 mm) or more above or below the ground or finished floor where the change in elevation is critical to the work operation shall be exempt from all requirements.

1103.2.3 Detached dwellings. Detached one- and two-family dwellings, their accessory structures and their associated sites and facilities are not required to comply with this chapter.

1103.2.4 Utility buildings. Group U occupancies are not required to comply with this chapter other than the following:

1. In agricultural buildings and livestock shelters, access is required to paved work areas and areas open to the general public.
2. Green houses and stables open to the public.
3. Private garages or carports that contain required accessible parking.

1103.2.5 Construction sites. Structures, sites and equipment directly associated with the actual processes of construction including, but not limited to, scaffolding, bridging, materials hoists, materials storage or construction trailers are not required to comply with this chapter.

1103.2.6 Raised areas. Raised areas used for purposes of security, life safety or fire safety including, but not limited to, observation galleries, prison guard towers, fire towers or lifeguard stands are not required to comply with this chapter.

1103.2.7 Limited access spaces. Spaces accessed only by ladders, catwalks, crawl spaces, freight elevators that are not part of an accessible route, or very narrow passageways are not required to comply with this chapter.

1103.2.8 Reserved.

1103.2.9 Equipment spaces. Spaces frequented only by service personnel for maintenance, repair or occasional monitoring of equipment are not required to comply with this chapter. Such spaces include, but are not limited to, elevator pits, elevator penthouses, mechanical, electrical or communications equipment rooms, piping or equipment catwalks, water or sewerage treatment pump rooms and stations, electrical substations and transformer vaults, and highway and tunnel utility facilities.

1103.2.10 Reserved.

1103.2.11 Reserved.

1103.2.12 Reserved.

1103.2.13 Detention and correctional facilities. In detention and correctional facilities, common use areas that are used only by inmates or detainees and security personnel, and that do not serve holding cells or housing cells required to be Accessible units, are not required to comply with this chapter.

1103.2.14 Walk-in coolers and freezers. Walk-in coolers and freezers intended for employee use only are not required to comply with this chapter.

SECTION BC 1104 ACCESSIBLE ROUTE

1104.1 Site arrival points. At least one accessible route within the site shall be provided from public transportation stops, accessible parking, accessible passenger loading zones, and public streets or sidewalks to the accessible building entrance served.

1104.2 Within a site. At least one accessible route shall connect accessible buildings, accessible facilities, accessible elements and accessible spaces that are on the same site and shall comply with Section 1104.5.

Exceptions:

1. An accessible route is not required between accessible buildings, accessible facilities, accessible elements and accessible spaces that have, as the only means of access between them, a vehicular way not providing for pedestrian access.
2. An accessible route to recreational facilities shall only be required to the extent specified in Section 1110.

1104.3 Connected spaces. When a building or portion of a building is required to be accessible, at least one accessible route shall be provided to each portion of the building, to accessible building entrances connecting accessible pedestrian walkways and to the public way.

Exceptions:

1. Stories and mezzanines exempted by Section 1104.4.
2. In a building, room or space used for assembly purposes with fixed seating, an accessible route shall not be required to serve levels where wheelchair spaces are not provided as permitted by other sections of this chapter.
3. Vertical access to elevated employee work stations within a courtroom complying with Section 1108.4.1.4.
4. An accessible route to recreational facilities shall only be required to the extent specified in Section 1110.

1104.3.1 Employee work areas. Common use circulation paths within employee work areas shall be accessible routes.

Exceptions: The following exceptions apply only to the common use circulation paths within an employee work area and are not intended to remove the requirement of Section 1103.2.2 that employee work areas be designed and constructed so that individuals with disabilities can approach, enter and exit the employee work area.

1. Common use circulation paths, located within employee work areas that are less than 300 square feet (27.9 m²) in size and defined by permanently installed partitions, counters, casework or furnishings not serving accessible employee work stations that are required in Section 1103.2.2, shall not be required to be accessible routes.
2. Common use circulation paths, located within employee work areas, that are an integral component of equipment, shall not be required to be accessible routes.

1104.3.2 Press boxes. Press boxes in a building, room or space used for assembly purposes shall be on an accessible route.

Exceptions:

1. An accessible route shall not be required to press boxes in bleachers that have a single point of entry from the bleachers, provided that the aggregate area of all press boxes for each area of sport activity is not more than 500 square feet (46.5 m²).
2. An accessible route shall not be required to free-standing press boxes that are more than 12 feet (3657.6 mm) above grade provided that the aggregate area of all press boxes for each area of sport activity is not more than 500 square feet (46.5 m²).

1104.4 Multilevel buildings and facilities. At least one accessible route shall connect each accessible level and mezzanine in multilevel buildings and facilities.

Exceptions:

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1. In nonresidential buildings, an accessible route is not required to levels and mezzanines above and below accessible levels where the aggregate area of all such levels and mezzanines that are not provided with accessible routes is not more than 2,500 square feet (232.3 m²). This exception shall not apply to:
 - 1.1. Multiple tenant facilities of Group M occupancies containing five or more tenant spaces where all such tenant spaces are located on the accessible levels;
 - 1.2. Levels or mezzanines containing offices of health care providers (Group B or I occupancies);
 - 1.3. Passenger transportation facilities and airports (Group A-3 or B occupancies); or
 - 1.4. Levels frequented by the public for assembly purposes other than levels where wheelchair spaces are not required to be provided as determined in accordance with Section 1108.2.4.
 - 1.5. Levels frequented by the public for government, public utility or health facility purposes.
2. Levels or mezzanines that do not contain accessible elements or other spaces as determined by Section 1107 or 1108 are not required to be served by an accessible route from an accessible level.
3. In air traffic control towers, an accessible route is not required to serve the cab and the floor immediately below the cab.
4. Where a two-story building or facility has one story or mezzanine with an occupant load of five or fewer persons that does not contain public use space, that story or mezzanine shall not be required to be connected by an accessible route to the story above or below.

The exemption of a level from accessible route requirements pursuant to the exceptions set forth in this section shall not be construed to automatically exempt such level from other accessibility provisions of this chapter including but not limited to requirements for accessible doors and toilet rooms. Such other accessibility provisions remain applicable to such level unless specifically exempted by other sections of this code.

1104.5 Location. Accessible routes shall coincide with or be located in the same area as a general circulation path. Where the circulation path is interior, the accessible route shall also be interior. Where only one accessible route is provided, the accessible route shall not pass through kitchens, storage rooms, restrooms, closets or similar spaces.

Exception: A single accessible route is permitted to pass through a kitchen in an Accessible unit, Type B+NYC unit, or Type B unit.

1104.6 Security barriers. Security barriers including, but not limited to, security bollards and security check points shall not obstruct a required accessible route or accessible means of egress.

Exception: Where security barriers incorporate elements that cannot comply with these requirements, such as certain metal detectors, fluoroscopes or other similar devices, the accessible route shall be permitted to be provided adjacent to security screening devices. The accessible route shall permit individuals with disabilities passing around security barriers to maintain visual contact with their personal items to the same extent provided others passing through the security barrier.

SECTION BC 1105 ACCESSIBLE ENTRANCES

1105.1 Public entrances. In addition to accessible entrances required by Sections 1105.1.1 through 1105.1.8, all public entrances shall be accessible.

Exceptions:

1. An accessible entrance is not required to areas not required to be accessible by Appendix E or this chapter.
2. Loading and service entrances that are not the only entrance to a building or a tenant space.
3. Revolving doors, revolving gates, or turnstiles shall not be required to be accessible provided that an accessible entrance is available adjacent to such revolving doors, revolving gates or turnstiles.

1105.1.1 Parking garage entrances. Where provided, direct access for pedestrians from parking structures to buildings or facility entrances shall be accessible.

1105.1.2 Entrances from tunnels or elevated walkways. Where direct access is provided for pedestrians from a pedestrian tunnel or elevated walkway to a building or facility, entrances from such access to the building or facility shall be accessible.

1105.1.3 Restricted entrances. Where restricted entrances are provided to a building or facility, all such restricted entrances to the building or facility shall be accessible.

1105.1.4 Entrances for inmates and detainees. Where entrances used only by inmates or detainees and security personnel are provided at judicial facilities, detention facilities or correctional facilities, all such entrances shall be accessible.

1105.1.5 Service entrances. If a service entrance is the only entrance to a building or a tenant space in a facility, that entrance shall be accessible.

1105.1.6 Tenant spaces. All entrances to tenant spaces that are required to be accessible shall be accessible entrances.

Exception: An accessible entrance is not required to self-service storage units that are not required to be accessible.

1105.1.7 Dwelling units and sleeping units. Doors and doorways at entrance(s) to Accessible units and Type B+NYC units, including hardware, shall comply with Section 404 (Doors and Doorways) of ICC A117.1. Doors and doorways, including hardware, at entrance(s) to Type B units shall comply with Section 1003.5 (Doors and doorways) of ICC A117.1.

Exceptions:

1. An accessible entrance is not required to dwelling units and sleeping units that are not required to be Accessible units, Type B+NYC units, or Type B units.
2. Entrances to multistory dwelling or sleeping units in Group R-2 occupancies as provided in Section 1107.2.5 that are not on the primary entry story to the unit and are not part of the accessible route required in Exception 1 of Section 1107.2.5 shall not be required to be accessible.

1105.1.8 Automatic doors. In facilities with the occupancies and building occupant loads indicated in Table 1105.1.8, at least one accessible public entrance shall be either a full power-operated door or a low-energy power-operated door.

Exception: For ground floor business or mercantile occupancies which are not yet demised for tenancy, the requirements of this section shall not apply until the occupant load for the tenant or tenants has been determined.

**TABLE 1105.1.8
PUBLIC ENTRANCE WITH POWER-OPERATED DOORS**

OCCUPANCY	OCCUPANT LOAD ≥
A-1, A-2, A-3, A-4, B, R-1	200
E, M	300

**SECTION BC 1106
PARKING AND PASSENGER LOADING FACILITIES**

1106.1 Required. Where parking is provided, 5 percent of the total number of parking spaces provided for a facility, but not less than one parking space, shall be accessible parking spaces except as otherwise required by Sections 1106.2 through 1106.4 of this code. Van-accessible parking spaces shall be provided in accordance with Section 1106.5 of this code. Accessible parking spaces shall be designed and constructed in accordance with Section 502 (Parking Spaces) of ICC A117.1. Where more than one parking facility is provided on a site, the number of parking spaces required to be accessible shall be calculated separately for each parking facility. Where a determination of the minimum number of parking spaces results in a number containing a decimal of 0.5 or more, the next highest integer shall be used.

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Exception: This section does not apply to parking spaces used exclusively for buses, trucks, other delivery vehicles, law enforcement vehicles or vehicular impound where lots accessed by the public are provided with an accessible passenger loading zone.

1106.2 Groups R-2 and R-3. Where parking is provided for occupancies in Groups R-2 and R-3, which are required to have Accessible, Type B+NYC, or Type B units, the number of accessible parking spaces shall be in compliance with Section 1106.1 and such number of accessible parking spaces shall be dispersed in accordance with Section 1106.6. Where parking is provided within or beneath a building, accessible parking spaces shall also be provided within or beneath the building.

1106.2.1 Lease, rental, or assignment of spaces. In a parking facility accessory to Occupancy Group R-2 or R-3 serving only the residents or employees of the management of such occupancy, or provided in compliance with Section 25-412 of the *New York City Zoning Resolution*, the accessible parking spaces in such facility may be leased, rented or assigned to an individual without disabilities on a no longer than month-to-month basis. Such leases, rentals, or assignments of the accessible parking spaces to individuals without disabilities shall be on written condition that such spaces be relinquished immediately at the end of the term of such lease, rental, or assignment to a resident or employee of the management of such occupancy who is an individual with disabilities.

1106.3 Hospital outpatient facilities. At least 10 percent, but not less than one, of care recipient and visitor parking spaces provided to serve hospital outpatient facilities shall be accessible.

1106.4 Rehabilitation facilities and outpatient physical therapy facilities. At least 20 percent, but not less than one, of the portion of care recipient and visitor parking spaces serving rehabilitation facilities specializing in treating conditions that affect mobility and outpatient physical therapy facilities shall be accessible.

1106.5 Van spaces. For every six or fraction of six accessible parking spaces, at least one shall be a van-accessible parking space. Van-accessible parking spaces shall be designed and constructed in accordance with ICC A117.1, including Section 502 (Parking Spaces).

Exception: In Group R-2 and R-3 occupancies, van-accessible spaces located within private garages not exceeding 300 square feet (27.9 m²) shall be permitted to have vehicular routes, entrances, parking spaces and access aisles with a minimum vertical clearance of 7 feet (2133.6 mm).

1106.6 Location. Accessible parking spaces shall be located on the shortest accessible route of travel from adjacent parking to an accessible building entrance. In parking facilities that do not serve a particular building, accessible parking spaces shall be located on the shortest route to an accessible pedestrian entrance to the parking facility. Where buildings have multiple accessible entrances with adjacent parking, accessible parking spaces shall be dispersed and located near the accessible entrances. In Occupancy Groups R-2 and R-3, at least one of each type of parking space shall be accessible.

Exceptions:

1. In multilevel parking structures, van-accessible parking spaces complying with Section 502 (Parking Spaces) of ICC A117.1 may be provided on one level.
2. Accessible parking spaces shall be permitted to be located in different parking facilities if substantially equivalent or greater accessibility is provided in terms of distance from an accessible entrance or entrances, parking fee and user convenience.
3. In an attended parking facility in which vehicles customarily are parked and later returned to their drivers by an attendant employed by the parking facility, the number of accessible parking spaces shall be provided in accordance with Table 1106.7.3 and Section 1106.7.3 of this code.
4. Mechanical access parking garages shall comply with Section 1106.7.4 of this code.

1106.7 Passenger loading zones. Passenger loading zones shall be designed and constructed in accordance with ICC A117.1 including Section 503 (Passenger Loading Zones).

1106.7.1 Continuous loading zones. Where passenger loading zones are provided, at least one accessible passenger loading zone shall be provided within each continuous 100 linear feet (30 400 mm) of loading zone space, or

fraction thereof, so that travel between accessible passenger loading zones will not exceed 100 linear feet (30 400 m).

1106.7.2 Medical facilities. A passenger loading zone shall be provided at an accessible entrance to licensed medical and long-term care facilities where people receive physical or medical treatment or care and where the period of stay exceeds 24 hours.

1106.7.3 Valet and attended parking. The number of accessible parking spaces in facilities that utilize valet and attended parking services shall be provided in accordance with Table 1106.7.3, and Sections 1106.7.3.1 and 1106.7.3.2.

TABLE 1106.7.3
VALET AND ATTENDED ACCESSIBLE PARKING SPACES

TOTAL PARKING SPACES PROVIDED IN PARKING FACILITIES	REQUIRED MINIMUM NUMBER OF ACCESSIBLE SPACES
1 to 25	1
26 to 50	2
51 to 75	3
76 to 100	4
101 to 150	5
151 to 200	6
201 to 300	7
301 to 400	8
401 to 500	9
501 to 1,000	2% of total
1,001 and over	20, plus one for each 100, or fraction thereof, over 1,000

1106.7.3.1 Valet parking. In a facility utilizing valet parking services in which vehicles are parked and later returned to their drivers by a valet employed by the facility, the number of accessible parking spaces shall be provided in accordance with Table 1106.7.3 of this code. A passenger loading zone complying with Section 1106.7 of this code shall be provided at valet parking services where the valet shall take control of the vehicles. Passenger loading zones shall comply with Section 503 (Passenger Loading Zones) of ICC A117.1.

1106.7.3.2 Attended parking. In an attended parking facility in which vehicles customarily are parked and later returned to their drivers by an attendant employed by the parking facility, the number of accessible parking spaces shall be provided in accordance with Table 1106.7.3 of this code.

1106.7.3.2.1 Passenger loading zone. A passenger loading zone complying with Section 1106.7 of this code shall be provided where an attendant shall take control of the vehicles. Passenger loading zones shall comply with Section 503 (Passenger Loading Zones) of ICC A117.1.

1106.7.3.2.2 Retrieval of vehicles. The attendant shall park and retrieve all vehicles not equipped with special controls entering the facility in which an individual with disabilities is either the driver or a passenger, provided accessible parking space is available.

1106.7.4 Mechanical access parking garages. Mechanical access parking garages shall provide at least one passenger loading zone in compliance with Section 1106.7 at vehicle drop-off and vehicle pick-up areas.

1106.8 Electrical vehicle charging stations. Electrical vehicle charging stations shall comply with Sections 1106.8.1 through 1106.8.5.

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Exception: Electrical vehicle charging stations intended for use by a designated vehicle or driver shall not be required to comply with this section.

1106.8.1 Number of accessible vehicle charging stations. Where provided for common use, at least five percent of the total number of electrical vehicle charging stations per facility, but not less than one for each type of electric vehicle charging station, shall be accessible. Where a multiport electric vehicle charging station can simultaneously charge more than one vehicle, the number of electric vehicle charging stations shall be counted as the number of electric vehicles that can be simultaneously charged. The number of accessible vehicle charging stations are in addition to the required accessible parking spaces.

1106.8.2 Electric vehicle charging space. At each electrical vehicle charging station required to be accessible, the charging space shall comply with the requirements for a van accessible parking space complying with Sections 502.2 through 502.5 of ICC A117.1.

1106.8.3 Accessible route. At each electric vehicle charging station required to be accessible, the charging station shall be located along an accessible route. An accessible route shall be provided between the charging station and the charging space.

Exception: In existing facilities with no accessible route, electrical vehicle charging stations are not required to be located along an accessible route.

1106.8.4 Obstructions. Electric vehicle charging stations shall be designed so accessible routes are not obstructed by cables or other elements.

1106.8.5 Electrical vehicle charging station controls. Electric vehicle charging stations and electric vehicle charging station controls shall comply with Sections 309.2 and 309.3 of ICC A117.1.

SECTION BC 1107 DWELLING UNITS AND SLEEPING UNITS

1107.1 General. In addition to the other requirements of this chapter, occupancies having dwelling units or sleeping units shall be provided with accessible features in accordance with this section.

1107.2 Design. Dwelling units and sleeping units which are required to be Accessible units, Type B+NYC units, or Type B units shall comply with this code and the applicable provisions of Chapter 10 of ICC A117.1. Type B+NYC units shall further comply with Section 1004 (Type B Units) of ICC A117.1, including any modifications made by Sections 1107.2.1 through 1107.2.8 of this code. Units required to be Type B+NYC units or Type B units are permitted to be designed and constructed as Accessible units.

1107.2.1 Type B+NYC unit doors and doorways. Doors and doorways at the entrance(s) to Type B+NYC dwelling or sleeping units shall comply with Section 1105.1.7 of this code. All other doors and doorways within the dwelling or sleeping unit, and patio or balcony doors of such dwelling or sleeping unit, meant for human passage shall comply with Section 1003.5 (Doors and Doorways) of ICC A117.1. Doors and doorways serving toilet and bathing rooms shall comply with Section 1003.5 of ICC A117.1.

Exceptions:

1. Maneuvering clearance at doors.

- 1.1. Where pull side, latch approach maneuvering clearance is required within the dwelling or sleeping unit for a door without a closer as per Figure 404.2.3.2(f) of ICC A117.1, the minimum maneuvering clearance perpendicular to the doorway shall be permitted to be reduced to 42 inches (1066.8 mm).
- 1.2. Where exterior spaces are greater than 24 inches (609.6 mm) in clear depth such spaces shall comply with the required door maneuvering clearances on both the interior and exterior side of the door.

2. **Door hardware.** Door hardware on doors within the dwelling or sleeping unit, except on entrance doors, shall not be required to comply with Section 404.2.6 (Door Hardware) of ICC A117.1 provided such hardware is readily replaceable without the removal or replacement of the door.

3. **Future reversibility for bedroom doors.** Bedroom doors and frames shall be permitted to be provided with mortised hinge and latch blanks to permit future reversal of the door on the same frame using common hand tools and without further alterations to the door and frame, provided such future swing of the door will not obstruct the maneuvering clearances required at the door or doorway.
4. **Storage facility doors.** Door maneuvering clearances are not required for doors that are accessed from the interior of a closet within a dwelling unit or sleeping unit.
5. **Supplemental toilet and bathing rooms.** Where one Type A toilet and bathing room is provided in a Type B+NYC unit in accordance with the exception in Section 1107.2.2 of this code, the doors and doorways to all other toilet and bathing rooms in that dwelling unit or sleeping unit shall not be required to comply with maneuvering clearances on the interior side of the bathroom, but shall comply with Section 1004.5.2 (User Passage Doorways) of ICC A117.1 and shall provide clear opening width of 32 inches (812.8 mm) minimum.
6. **Bathroom and toilet room doors.**
 - 6.1. Doors shall not swing into the required clear floor or ground space or clearance for any fixture unless a clear floor or ground space complying with Section 305.3 of ICC A117.1 is provided within the room, beyond the arc of the door swing.
 - 6.2. Bathroom and toilet room doors shall be provided with maneuvering clearances on the toilet room or bathroom side of the door in accordance with Section 404.2.3 of ICC A117.1.

††† **1107.2.2 Type B+NYC unit toilet and bathing rooms.** Where toilet and bathing rooms are provided in a Type B+NYC dwelling unit or sleeping unit, all such toilet and bathing rooms shall comply with Sections 1107.2.2.1 through 1107.2.2.9. Within each such toilet room, at least one lavatory, and one water closet shall comply with Sections 1107.2.2.1 through 1107.2.2.7. Within each bathing room, at least one lavatory, one water closet, and either a bathtub or shower shall comply with Sections 1107.2.2.1 through 1107.2.2.8. Toilet and bathing fixtures shall be in a single room, such that travel between fixtures does not require travel beyond the room in which the fixtures of such toilet or bathing room is located. Additional fixtures shall comply with Section 1107.2.2.9.

Exception for Type A toilet and bathing room: Where at least one toilet and bathing room complying with Sections 1003.11 (Toilet and Bathing Facility) and 1003.3.2 (Turning Space) of ICC A117.1 is provided within a Type B+NYC dwelling unit or sleeping unit in accordance with Items 1 through 3 of this exception, other toilet and bathing rooms in the same unit shall be required to comply only with Sections 1004.3 (Accessible Route), 1004.4 (Walking Surfaces), 1004.5.2 (User Passage Doorways), 1004.9 (Operable Parts) and 1004.11.1 (Grab Bar and Shower Seat Reinforcement) of ICC A117.1. In addition, a vertical grab bar 18 inches (457.2 mm) minimum in length shall be mounted with the bottom of the bar located between 39 inches (990.6 mm) and 41 inches (1041.4 mm) above the floor, and with the center of the bar located at 30 inches (762 mm) from the rear wall. Doors and doorways to such toilet and bathing rooms shall be subject to Section 1107.2.1, Exception 5.

1. At least one lavatory, one water closet and either a bathtub or shower within such toilet or bathing facility shall comply with Section 1003.11 of ICC A117.1. Such toilet and bathing fixtures shall be in a single toilet or bathing area, such that travel between fixtures does not require travel beyond the area in which the fixtures of such toilet or bathing room are located.
2. Toilet paper dispensers within such rooms shall comply with Section 604.7 (Dispensers) of ICC A117.1.
3. Medicine cabinets, if provided, must include a storage shelf no higher than 44 inches (1117.6 mm) above the floor.

1107.2.2.1 Accessible route. At least one accessible route shall connect all spaces and elements with each toilet and bathing room within a dwelling unit or sleeping unit unless as permitted in Section 1107.2.5, Item 3 of this code. Accessible routes shall comply with ICC A117.1.

1107.2.2.2 Operable parts. Lighting controls, electrical switches and receptacle outlets, and environmental controls shall comply with Section 309 of ICC A117.1.

1107.2.2.3 Knee and toe clearance. Clear floor space at fixtures shall be permitted to include knee and toe clearances complying with Section 306 of ICC A117.1.

1107.2.2.4 Overlap. Clear floor or ground spaces and clearances are permitted to overlap.

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1107.2.2.5 Lavatory. Lavatories shall comply with Section 606 of ICC A117.1.

Exception: Cabinetry shall be permitted under the lavatory, provided:

1. Such cabinetry can be removed without removal or replacement of the lavatory;
2. The finish floor extends under such cabinetry; and
3. The walls behind and surrounding such cabinetry are finished.

1107.2.2.6 Mirrors and medicine cabinets. Mirrors above lavatories shall have the bottom edge of the reflecting surface 40 inches (1016 mm) maximum above the floor or ground. Medicine cabinets, if provided, must include a storage shelf no higher than 44 inches (1117.6 mm) above the floor.

1107.2.2.7 Water closet. Water closets shall comply with Sections 1107.2.2.7.1 through 1107.2.2.7.6.

1107.2.2.7.1 Location. The water closet shall be positioned with a wall to the rear and to one side. The centerline of the water closet shall be 18 inches (457.2 mm) from the side wall.

1107.2.2.7.2 Clearance. Clearance around the water closet shall comply with Sections 1107.2.2.7.2.1 through 1107.2.2.7.2.3.

1107.2.2.7.2.1 Parallel approach. Where only a parallel approach is provided to the water closet, the clearance shall be 56 inches (1422 mm) minimum, measured perpendicular from the rear wall, and 48 inches (1220 mm) minimum, measured perpendicular from the sidewall. A lavatory complying with Section 1107.2.2.5 shall be permitted on the rear wall, 18 inches (457.2 mm) minimum from the water closet centerline.

1107.2.2.7.2.2 Forward approach. Where only a forward approach is provided to the water closet, the clearance shall be 66 inches (1676 mm) minimum, measured perpendicular from the rear wall, and 48 inches (1220 mm) minimum, measured perpendicular from the side wall. A lavatory complying with Section 1107.2.2.5 shall be permitted on the rear wall, 18 inches (457.2 mm) minimum from the water closet centerline.

1107.2.2.7.2.3 Parallel and forward approach. Where both a parallel and a forward approach are provided to the water closet, the clearance shall be 56 inches (1422 mm) minimum, measured perpendicular from the rear wall, and 60 inches (1524 mm) minimum, measured perpendicular from the side wall. No fixtures or obstructions, other than the water closet, shall be within the clearance.

1107.2.2.7.3 Grab bars. Grab bars for water closets shall comply with Section 609 of ICC A117.1 and shall be provided in accordance with Sections 1107.2.2.7.3.1 through 1107.2.2.7.3.2 of this code. Mounting heights of grab bars shall comply with Section 609.4 of ICC A117.1.

Exception: Grab bars are not required to be installed where reinforcement for such grab bars is installed and located to permit future installation of grab bars complying with Section 1107.2.2.7.3 of this code.

1107.2.2.7.3.1 Fixed side wall grab bars. Fixed side wall grab bars shall be 42 inches (1066.8 mm) minimum in length, located 12 inches (304.8 mm) maximum from the rear wall and extending 54 inches (1371.6 mm) minimum from the rear wall. In addition, a vertical grab bar 18 inches (457.2 mm) minimum in length shall be mounted with the bottom of the bar located between 39 inches (990.6 mm) and 41 inches (1041.4 mm) above the floor, and with the center of the bar located at 30 inches (762 mm) from the rear wall.

Exception: Where a side wall is not available for a 42-inch (1066.8 mm) grab bar, the sidewall grab bar shall be permitted to be 24 inches (609.2 mm) minimum in length, located 12 inches (304.8 mm) maximum from the rear wall.

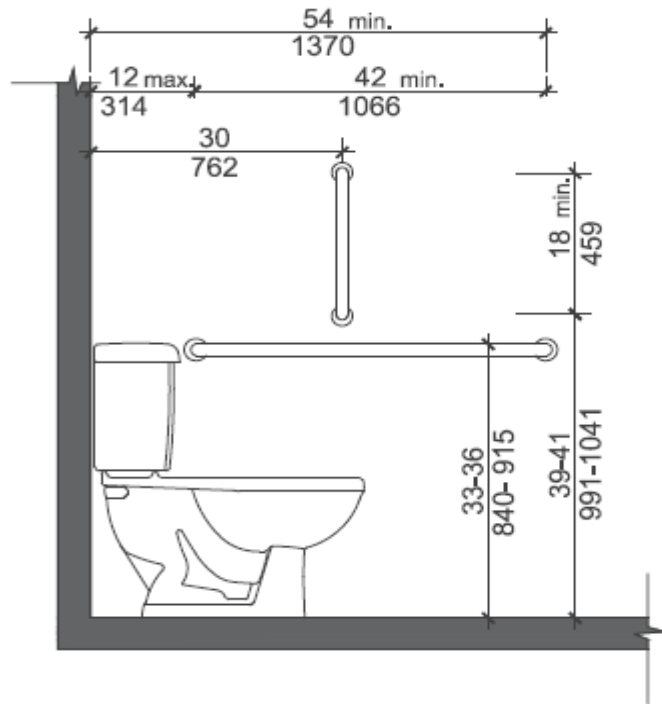


FIGURE 1107.2.2.7.3.1
SIDEWALL GRAB BAR LOCATION

1107.2.2.7.3.2 Rear wall grab bars. The rear wall grab bar shall be 36 inches (914.4 mm) minimum in length, and extend from the centerline of the water closet 12 inches (304.8 mm) minimum on the side closet to the wall, and 24 inches (609.2 mm) minimum on the transfer side.

Exception: Where wall space will not permit a grab bar 36 inches (914.4 mm) minimum in length, reinforcement for a rear wall grab bar 24 inches (609.2 mm) minimum in length centered on the water closet shall be provided.

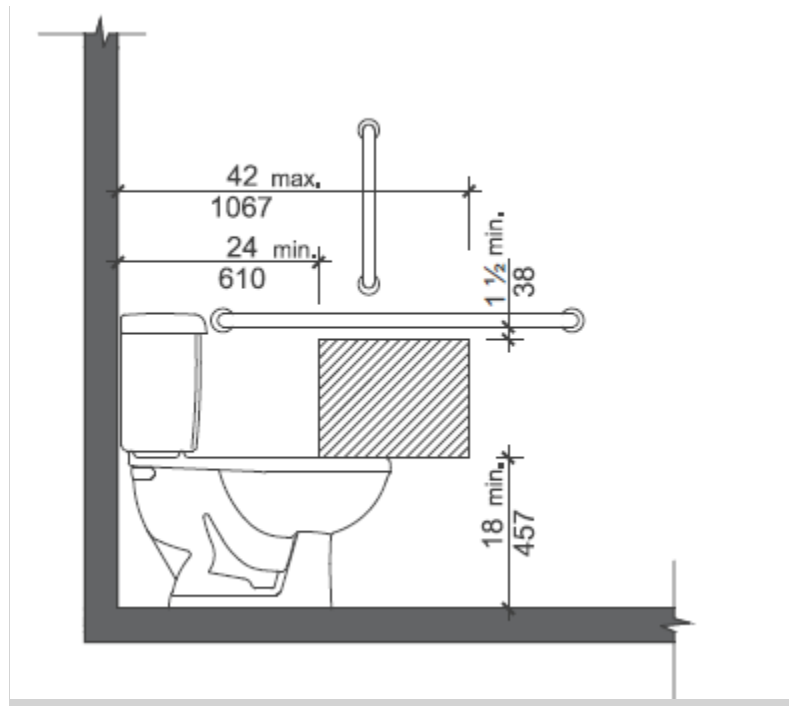
1107.2.2.7.4 Height. The top of the toilet seat shall be 15 inches (381 mm) minimum and 19 inches (482.6 mm) maximum above the floor or ground.

1107.2.2.7.5 Flush controls. Flush controls shall comply with Section 309 of ICC A117.1. Flush controls shall be located in accordance with one of the following:

1. On the open side of the water closet; or
2. Centrally located on the top of the tank or water closet; or
3. Centrally located on the water closet rear wall.

1107.2.2.7.6 Dispensers. Toilet paper dispensers shall comply with this section. The outlet of the dispenser shall be located within an area 24 inches (609.2 mm) minimum and 42 inches (1066.8 mm) maximum from the rear wall. The outlet of the dispenser shall be located 18 inches (457.2 mm) minimum above the floor.

Dispensers shall comply with Section 609.3 of ICC A117.1



**FIGURE 1107.2.2.7.6
DISPENSER OUTLET LOCATION**

1107.2.2.8 Bathing facilities. Where provided, a bathtub shall comply with Section 1107.2.2.8.1, and a shower compartment shall comply with Section 1107.2.2.8.2.

1107.2.2.8.1 Bathtubs. Bathtubs shall comply with Section 607 of ICC A117.1. Lavatories complying with Section 1107.2.2.5 of this code shall be permitted in the clearance required by Section 607.2 of ICC A117.1. Bathtub seats shall not be required.

Exception: Where a hand shower in compliance with Section 607.6 of ICC A117.1 is not provided, the owner shall provide such a hand shower at the time an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by an individual with disabilities, whichever is later, at the owner's expense.

1107.2.2.8.1.1 Grab bars. Grab bars for bathtubs shall comply with Section 609 of ICC A117.1 and shall be provided in accordance with Section 607.4 of ICC A117.1.

Exception: Grab bars are not required to be installed where reinforcement for such grab bars is installed and located to permit future installation of grab bars complying with Section 1107.2.2.8.1.1.

1107.2.2.8.2 Showers. Showers shall comply with Section 608 of ICC A117.1.

Exceptions:

1. For showers other than transfer-type showers, counter tops and cabinetry shall be permitted at the control end of the clearance, provided such counter tops and cabinetry can be removed and the floor finish extends under such cabinetry.
2. Where a hand shower in compliance with Section 608.5 of ICC A117.1 is not provided pursuant to the exception in such section, the owner shall provide such a hand shower at the time an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by an individual with disabilities, whichever is later, at the owner's expense.

1107.2.2.8.2.1 Grab bars and seats. Grab bars and seats for showers shall comply with Sections 609 and 610 of ICC A117.1 and shall be provided in accordance with Sections 608.2.3.2 and 608.3 of ICC A117.1.

Exception: Grab bars and seats are not required to be installed where reinforcement for such grab bars and seats is installed and located to permit future installation of grab bars and seats complying with Section 1107.2.2.8.2.1 of this code.

1107.2.2.9 Additional fixtures. Additional fixtures provided within toilet and bathing rooms shall comply with Sections 1004.11.1 (Grab Bar and Shower Seat Reinforcement), 1004.11.3.1.1 (Lavatory), 1004.11.3.1.2 (Water Closet) and 1004.11.3.1.3 (Bathing Fixtures) of ICC A117.1.

1107.2.3 Type B+NYC unit kitchen and kitchenette. Where kitchens and kitchenettes are provided in a Type B+NYC dwelling unit or sleeping unit, the primary kitchen or kitchenette shall be constructed in accordance with the kitchen requirements of Section 1003.12 (Kitchen) and 1003.3.2 (Turning Space) of ICC A117.1, including any modifications made by Sections 1107.2.3.1 through 1107.2.3.5 of this code. Secondary kitchens and kitchenettes within the same dwelling unit or sleeping unit shall be required to comply only with Section 1004.12 (Kitchens) of ICC A117.1.

1107.2.3.1 Kitchen counters. A kitchen counter that is required to comply with Section 1003.12.3.2 or 1003.12.4.2 (Height) of ICC A117.1 shall be permitted to be adjustable or designed to be replaceable as a unit at variable heights between 29 inches and 36 inches (736.6 mm and 914.4 mm), measured from the floor to the top of the work surface. The owner shall adjust or replace such countertop at the time an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by such individual, whichever is later, at the owner's expense.

1107.2.3.2 Appliances in kitchen and kitchenette. Appliances in kitchens and kitchenettes shall comply with Section 1003.12.5 (Appliances) of ICC A117.1.

Exception: Where appliances' controls are not in compliance with Section 309.3 (Height) of ICC A117.1, the owner shall replace such appliances with appliances in conformance with Section 309.3 of ICC A117.1 at the time an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by such individual, whichever is later, at the owner's expense. However, the owner shall not be responsible to provide a particular model or type of appliances provided such appliances and controls comply with Sections 1003.12.5 and 309.3 of ICC A117.1.

1107.2.3.3 Refrigerator/freezers. Combination refrigerators and freezers shall comply with Section 1003.12.5.6 (Refrigerator/Freezer) of ICC A117.1. In addition, where less than 100 percent of storage volume of the freezer is located within 54 inches (1371.6 mm) maximum above the floor, such freezer shall be a self-defrosting type.

Exception: Where refrigerators and freezers are not in compliance with this section, the owner shall replace such appliances with complying appliances at the time an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by such individual, whichever is later, at the owner's expense. However, the owner shall not be responsible to provide a particular model or type of appliances provided such appliances comply with this section.

1107.2.3.4 Cooktops and ovens. Cooktops and ovens shall comply with Sections 1003.12.5.4 and 1003.12.5.5 of ICC A117.1, respectively. However, oven controls shall not be required to be located on either side of the oven door, provided such controls comply with Section 1003.12.5.5.4 of ICC A117.1. Where double ovens are provided, at least one oven interior and its controls shall comply with Section 309.3 (Height) of ICC A117.1.

1107.2.3.5 Kitchen and kitchenette storage. Kitchen storage, kitchen cabinets, drawers, and shelf storage areas, within kitchen and kitchenettes shall comply with Section 905 (Storage Facilities) of ICC A117.1 pursuant to Section 1107.2.3 of this code, except overhead cabinets. In addition, at least one storage shelf or cabinet, mounted above the work surface at 48 inches (1220 mm) maximum above the floor, shall be provided.

Exception: Where the storage shelf or cabinet is not provided in accordance with this section, the owner shall install such storage shelf or cabinet in compliance with this section at the time an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by such individual, whichever is later, at the owner's expense.

1107.2.4 Type B+NYC unit operable windows. All operable windows required to provide natural ventilation and/or an emergency escape and rescue opening in rooms or spaces in a Type B+NYC dwelling unit or sleeping unit shall comply with Section 1003.13 (Windows) of ICC A117.1.

Exceptions:

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1. Where windows that are required to provide natural ventilation are not in compliance with reach ranges specified in Section 309.3 (Height) for operable parts as required by Section 1003.13.1 of ICC A117.1, the operable parts of such windows shall be designed to be operable by the use of adaptive devices. The owner shall provide such adaptive devices at the time with an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by such individual, whichever is later, at the owner's expense.
2. Compliance with Section 1107.2.4 of this code is not required in kitchenettes less than 80 square feet (7.4 m²) in area and equipped with an accessible mechanical means of ventilation complying with the *New York City Mechanical Code*, and in bathrooms equipped with an accessible mechanical means of ventilation complying with the *New York City Mechanical Code*.

1107.2.5 Type B+NYC multistory units. Multistory Type B+NYC dwelling units or sleeping units shall comply with the following:

1. One of the stories with an accessible entrance shall be designated as the primary entry story to the unit;
2. All rooms, spaces and doors on the primary entry story shall comply with Section 1107.2; and
3. Rooms, spaces or doors located on other than the primary entry story, and interior routes thereto, need not comply with Section 1107.2 where the primary entry story contains equivalent functional facilities. Functional facilities shall include cooking facilities, bathing facilities, laundry equipment, sleeping areas, living areas, dining areas, and outdoor areas such as balconies or terraces.

Exception: Functional facilities in compliance with Section 1107.2 need not be located on the primary entry story, but may be located on any story within the dwelling unit or sleeping unit, provided that all rooms, spaces and doors located on such story containing such functional facilities comply with Section 1107.2. Notwithstanding the above, at least one toilet room complying with Section 1107.2.2 shall be provided on the primary entry story. In addition, one of the following conditions shall be met:

1. An accessible external elevator is provided to connect all such stories of the multistory dwelling unit or sleeping unit; or
2. An accessible route complying with Section 402 (accessible routes) of ICC A117.1 is provided within the dwelling unit or sleeping unit to connect all such stories of the unit.

1107.2.6 Type B+NYC unit raised or sunken floor area. Where a raised or sunken floor area in a portion of a living, dining, or sleeping room within a Type B+NYC dwelling unit or sleeping unit that is permitted by Section 1004.3 (Accessible Route, Exception 1 and 2) of ICC A117.1 is provided, steps complying with Section 504 (Stairways) of ICC A117.1 with a minimum clear width of 36 inches (914.4 mm) shall connect such portion of raised or sunken floor area to an accessible route. In addition, a minimum area of 80 square feet (7.4 m²), and 8 feet (2438.4 mm) in one dimension, of each of such living, dining, or sleeping room shall be connected by an accessible route that is in compliance with Section 1004.3.2 (Components) of ICC A117.1.

1107.2.7 Type B+NYC unit storage facilities. Where storage facilities are provided within a Type B+NYC dwelling unit or sleeping unit, they shall comply with Section 905 (Storage Facilities) of ICC A117.1.

Exceptions:

1. A turning space shall be required in storage facilities greater than 48 inches (12 mm) in depth in compliance with Section 1003.3.2 of ICC A117.1.
2. Where accessible storage elements are not in compliance with Section 905.3 of ICC A117.1, the owner shall relocate such elements to be in compliance with the section at the time an individual with disabilities takes occupancy of the unit, or within 10 days of the date the request is made by an individual with disabilities, whichever is later, at the owner's expense.

1107.2.8 Type B+NYC unit laundry equipment. Where washing machines or clothes dryers are provided within a Type B+NYC dwelling unit or sleeping unit, such equipment shall comply with Section 611 (Washing Machines and Clothes Dryers) of ICC A117.1 and shall be front loading. Laundry equipment in accessible common-use areas as required in Section 1107.3 shall comply with Section E105.2 of Appendix E of this code.

Exception: At the option of the owner, laundry equipment conforming to this section within the dwelling unit or sleeping unit may be provided at the time an individual with disabilities takes occupancy of the unit, or within

10 days of the date the request is made by such individual, whichever is later, at the owner's expense. However, the owner shall not be responsible to provide a particular model or type of equipment provided such equipment complies with this section.

1107.3 Accessible spaces. Rooms and spaces available to the general public or available for common use by residents and serving Accessible units, Type B+NYC units or Type B units shall be accessible. Accessible spaces shall include, but not be limited to, spaces for residents' use, such as laundry rooms, refuse disposal and storage locations, mailbox areas, recreational facilities, assembly and tenants' meeting rooms, storage rooms, management offices, parking areas, toilet and bathing rooms, kitchen, living and dining areas and any exterior spaces, including patios, terraces and balconies.

Exception: Stories and mezzanines exempted by Section 1107.4.

1107.3.1 Mailboxes. Except as otherwise provided by rules of the department for the purposes of complying with rules and regulations established by the United States Postal Service and/or the United States Department of Housing and Urban Development, where mailboxes are provided for each dwelling unit or sleeping unit in an interior location, 100 percent of such mailboxes shall comply with ICC A117.1, and the operable parts of such mailboxes shall be no higher than 48 inches (1220 mm) above the finished floor.

1107.4 Accessible route. At least one accessible route shall connect accessible building or facility entrances with the required accessible entrance(s) of each Accessible unit, Type B+NYC unit, and Type B unit within the building or facility and with those exterior and interior spaces and facilities that serve the units.

Exceptions:

1. Exterior spaces, including but not limited to roof terraces, exterior decks, patios or balconies that are part of Type B+NYC units or Type B units, that are not for public use or common use, that have impervious surfaces, and that are not more than 4 inches (101.6 mm) below the finished floor level of the adjacent interior space of the unit. Such roof terraces, decks, patios or balconies shall be designed so that accessibility can be readily provided, without modifications to the guard rail heights and structural supports, by the installation of a noncombustible ramp in compliance with Section 405 (Ramps) of ICC A117.1, or a noncombustible level platform, with removable panel for access to floor drainage, that is permeable to weather and in compliance with Section 302 (Floor Surfaces) and Section 303 (Changes in Level) of ICC A117.1.
2. In Group I-3 facilities, an accessible route is not required to connect other levels or mezzanines where Accessible units, all common use areas serving Accessible units and all public use areas are on levels served by an accessible route.
3. In Group R-1 occupancies, an accessible route is not required to connect stories or mezzanines within individual units, provided the accessible level meets the provisions for Accessible units and sleeping accommodations for two persons minimum and a toilet facility are provided on that level.
4. An accessible route between stories is not required where Type B units are exempted by Section 1107.7.

1107.5 Group I. Accessible units shall be provided in Group I occupancies in accordance with Sections 1107.5.1 through 1107.5.5.

1107.5.1 Group I-1 Accessible units. In Group I-1 occupancies, at least 10 percent, but not less than one, of the dwelling units and sleeping units shall be Accessible units. The remainder shall be Type B+NYC units with all grab bars installed where grab bar reinforcements are required.

Exceptions:

1. In Group I-1 occupancies classified as "convalescent facilities," one hundred percent of the dwelling units or sleeping units shall be Accessible units.
2. In Group I-1 occupancies where the governmental agency that licenses, funds or approves such facilities documents that such facilities are not targeted for people with conditions that affect mobility, at least five percent, but not less than one, of the dwelling units and sleeping units shall be Accessible units, and the remainder shall be Type B+NYC units. Conditions that affect mobility include conditions requiring the use or assistance of a brace, cane, crutch, prosthetic device, wheelchair, or powered mobility aid; arthritic, neurological, or orthopedic conditions that severely limit one's ability to walk;‡ respiratory diseases and

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other conditions which may require the use of portable oxygen; and cardiac conditions that impose significant functional limitations.

1107.5.2 Group I-2 nursing homes. In nursing homes of Group I-2 occupancies 100 percent of the dwelling units and sleeping units shall be Accessible units.

1107.5.3 Group I-2 hospitals. In general purpose hospitals, psychiatric facilities, detoxification facilities and residential care/assisted living facilities of Group I-2 occupancies, 100 percent of the dwelling units and sleeping units shall be Accessible units.

1107.5.3.1 Accessible unit entry doors. Entry doors to accessible dwelling units or sleeping units shall not be required to provide the maneuvering clearance beyond the latch side of the door.

1107.5.4 Group I-2 rehabilitation facilities. In hospitals and rehabilitation facilities of Group I-2 occupancies that specialize in treating conditions that affect mobility, or units within either that specialize in treating conditions that affect mobility, 100 percent of the dwelling units and sleeping units shall be Accessible units.

1107.5.4.1 Enriched assisted living residences (EALR) and special needs assisted living residences (SNALR). In enriched assisted living residences (EALR) and special needs assisted living residences (SNALR) licensed by the New York State Department of Health, at least ten percent, but not less than one, of the dwelling units and sleeping units shall be Accessible units. The remainder shall be Type B+NYC units with all grab bars installed where grab bar reinforcements are required.

1107.5.5 Group I-3. Accessible units shall be provided in Group I-3 occupancies in accordance with Sections 1107.5.5.1 through 1107.5.5.3.

1107.5.5.1 Group I-3 sleeping units. In Group I-3 occupancies, at least 3 percent of the total number of sleeping units in the facility, but not less than one unit in each classification level, shall be Accessible units.

1107.5.5.2 Special holding cells and special housing cells or rooms. In addition to the Accessible units required by Section 1107.5.5.1, where special holding cells or special housing cells or rooms are provided, at least one serving each purpose shall be an Accessible unit. Cells or rooms subject to this requirement include, but are not limited to, those used for purposes of orientation, protective custody, administrative or disciplinary detention or segregation, detoxification and medical isolation.

Exception: Cells or rooms specially designed without protrusions and that are used solely for purposes of suicide prevention shall not be required to include grab bars.

1107.5.5.3 Medical care facilities. In addition to any medical isolation cells required by Section 1107.5.5.2 to be Accessible units, 100 percent of the patient sleeping units or cells in medical facilities of Group I-3 occupancies shall be Accessible units.

1107.6 Group R. Accessible units, Type B+NYC units and Type B units shall be provided in Group R occupancies in accordance with Sections 1107.6.1 through 1107.6.3.

1107.6.1 Group R-1. Accessible units, Type B+NYC units, and Type B units shall be provided in Group R-1 occupancies in accordance with Sections 1107.6.1.1 through 1107.6.1.3.

Exception: Boarding houses, dormitories, fraternity houses and sorority houses in Group R-1 occupancies shall comply with Section 1107.6.1.4.

1107.6.1.1 Accessible units. Accessible dwelling units and sleeping units shall be provided in accordance with Table 1107.6.1.1. Where buildings contain more than 50 dwelling units or sleeping units, the number of Accessible units shall be determined per building. Where buildings contain 50 or fewer dwelling units or sleeping units, all dwelling units and sleeping units on a site shall be considered to determine the total number of Accessible units. Accessible units shall be dispersed among the various classes of units. Roll-in showers provided in Accessible units shall include a permanently mounted folding shower seat.

**TABLE 1107.6.1.1
ACCESSIBLE DWELLING UNITS AND SLEEPING UNITS**

TOTAL NUMBER OF UNITS PROVIDED	MINIMUM REQUIRED NUMBER OF ACCESSIBLE UNITS WITHOUT ROLL-IN SHOWERS	MINIMUM REQUIRED NUMBER OF ACCESSIBLE UNITS WITH ROLL-IN SHOWERS	TOTAL NUMBER OF REQUIRED ACCESSIBLE UNITS
1 to 25	1	0	1
26 to 50	2	0	2
51 to 75	3	1	4
76 to 100	4	1	5
101 to 150	5	2	7
151 to 200	6	2	8
201 to 300	7	3	10
301 to 400	8	4	12
401 to 500	9	4	13
501 to 1,000	2% of total	1% of total	3% of total
Over 1,000	20, plus 1 for each 100, or fraction thereof, over 1,000	10 plus 1 for each 100, or fraction thereof, over 1,000	30 plus 2 for each 100, or fraction thereof, over 1,000

1107.6.1.2 Type B+NYC units. In structures with four or more dwelling units or sleeping units intended to be occupied as a residence, every dwelling unit and sleeping unit intended to be occupied as a residence and not required to be an Accessible unit shall be a Type B+NYC unit unless the number of Type B+NYC units is permitted to be reduced in accordance with Section 1107.7.4. Where no Type B+NYC units are required per Section 1107.7.4, all units not required to be Accessible units shall be Type B units.

Exception: The number of Type B units is permitted to be reduced in accordance with Section 1107.7.

1107.6.1.3 Doors and doorways. In all units, including those not required to be Accessible units, Type B+NYC units, or Type B units, entrances, doors, and doorways providing user passage into and within units shall comply with Section 404.2.2 (Clear Width) of ICC A117.1.

1107.6.1.4 Boarding houses, dormitories, fraternity houses and sorority houses in Group R-1. Accessible units and Type B+NYC units shall be provided in boarding houses, dormitories, fraternity houses and sorority houses in Group R-1 occupancies in accordance with Sections 1107.6.1.4.1 and 1107.6.1.4.2. Where the building or part thereof contains sleeping units where residents share bathroom or kitchen facilities, or both, bedrooms shall be counted as sleeping units for the purpose of determining the number of units. Where the sleeping units are grouped in suites, only one sleeping unit in each suite shall be permitted to count towards the number of required Accessible units.

1107.6.1.4.1 Accessible units. Accessible dwelling units and sleeping units shall be provided in accordance with Table 1107.6.1.1.

1107.6.1.4.2 Type B+NYC units. Every dwelling unit and every sleeping unit not required to be an Accessible unit shall be a Type B+NYC unit unless the number of Type B+NYC units is permitted to be reduced in accordance with Section 1107.7.4. Where no Type B+NYC units are required in accordance with Section 1107.7.4, all units shall be Type B units.

Exception: The number of Type B units is permitted to be reduced in accordance with Section 1107.7.

1107.6.2 Group R-2. Type B+NYC units and Type B units shall be provided in Group R-2 occupancies in accordance with Section 1107.6.2.1.

1107.6.2.1 Type B+NYC units. Every dwelling unit and sleeping unit shall be a Type B+NYC unit.

Exception: The number of Type B+NYC units is permitted to be reduced in accordance with Section 1107.7.4.

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1107.6.2.2 Type B units. Where no Type B+NYC units are required in accordance with Section 1107.7.4, all units intended to be occupied as a residence shall be Type B units.

Exceptions:

1. The number of Type B units is permitted to be reduced in accordance with Section 1107.7.
2. Buildings containing fewer than four dwelling units or sleeping units need not provide Type B units.

1107.6.3 Group R-3. In Group R-3 occupancies where there are four or more dwelling units or sleeping units intended to be occupied as a residence in a single structure, every dwelling unit and sleeping unit intended to be occupied as a residence shall be a Type B unit.

Exception: The number of Type B units is permitted to be reduced in accordance with Section 1107.7.

1107.7 General exceptions for Type B units. Where specifically permitted by Section 1107.6, the required number of Type B units is permitted to be reduced in accordance with Sections 1107.7.1 through 1107.7.3.

1107.7.1 Structures without elevator service where Type B units are required. Where no elevator service is provided in a structure or required by other sections of this code, only the dwelling units and sleeping units that are located on stories indicated in Sections 1107.7.1.1 and 1107.7.1.2 are required to be Type B units.

1107.7.1.1 One story with Type B units required. At least one story containing dwelling units or sleeping units intended to be occupied as a residence shall be provided with an accessible entrance and accessible route from the exterior of the structure and all units intended to be occupied as a residence on that story shall be Type B units.

1107.7.1.2 Other stories with Type B units required. If other stories containing dwelling units or sleeping units intended to be occupied as a residence are served by a building entrance that is in proximity to arrival points as indicated in Items 1 and 2, such building entrance shall be accessible and all dwelling units and sleeping units intended to be occupied as a residence served by that entrance on that story shall be Type B units.

1. Where the slopes of the undisturbed site measured between the planned entrance and all vehicular or pedestrian arrival points within 50 feet (15 240 mm) of the planned entrance are 10 percent or less, and
2. Where the slopes of the planned finished grade measured between the entrance and all vehicular or pedestrian arrival points within 50 feet (15 240 mm) of the planned entrance are 10 percent or less.

Where no such arrival points are within 50 feet (15 240 mm) of the entrance, the closest arrival point shall be used unless that arrival point serves the story required by Section 1107.7.1.1.

1107.7.2 Multistory units where Type B units are required. A multistory dwelling unit or sleeping unit that is not provided with elevator service is not required to be a Type B unit. Where a multistory unit is provided with external elevator service to only one floor, the floor provided with elevator service shall be the primary entry to the unit, shall comply with the requirements for a Type B unit and, where provided within the unit, a living area, a kitchen and a toilet facility shall be provided on that floor.

1107.7.3 Elevator service to the lowest story with Type B units. Where elevator service in the building provides an accessible route only to the lowest story containing dwelling units or sleeping units intended to be occupied as a residence, only the units on that story that are intended to be occupied as a residence on the lowest story served by the elevator are required to be Type B units.

1107.7.4 General exceptions for Type B+NYC units. Where specifically permitted by Sections 1107.5 and 1107.6, the required number of Type B+NYC units is permitted to be reduced in accordance with Section 1107.7.4.1.

1107.7.4.1 Buildings or structures without elevator service where Type B+NYC units are required. In buildings or structures where no elevator service is provided or required by other sections of this code, only the dwelling units and sleeping units that are located on stories indicated in Section 1107.7.4.1.1 are required to be Type B+NYC units.

1107.7.4.1.1 Units located in the cellar, basement, or first floor. In buildings or structures where the lowest story containing dwelling or sleeping units is the cellar, basement, or first floor, at least one such story containing dwelling or sleeping units, regardless of intent to occupy as a residence, shall be provided with an accessible entrance and accessible route from the exterior of the building or structure and all units on that

story, regardless of intent to occupy as a residence, shall be Type B+NYC units. Where no dwelling units or sleeping units are located in the cellar, basement, or first floor, Type B units shall be provided where required by Section 1107.7.1 through 1107.7.3.

Exceptions:

1. Buildings containing fewer than four dwelling units or sleeping units need not provide Type B units.
2. Group R-2 occupancies in buildings with first occupancy on or before March 13, 1991 need not provide Type B units.

SECTION BC 1108 SPECIAL OCCUPANCIES

1108.1 General. In addition to the other requirements of this chapter and applicable provisions of Appendices E and N, the requirements of Sections 1108.2 through 1108.5 shall apply to specific occupancies.

1108.2 Assembly area seating. Assembly areas with seating shall comply with Sections 1108.2.1 through 1108.2.5. Lawn seating shall comply with Section 1108.2.6. Assistive listening systems shall comply with Section 1108.2.7. Performance areas viewed from assembly seating areas shall comply with Section 1108.2.8. Dining and drinking areas shall comply with Section 1108.2.9.

1108.2.1 Services. If a service or facility is provided in an area that is not required to be accessible in accordance with Section 1108.2.9, the same service or facility shall be provided on an accessible level and shall be accessible.

1108.2.2 Wheelchair spaces. In theaters, bleachers, grandstands, stadiums, arenas and other assembly areas, accessible wheelchair spaces, companion seats, and designated aisle seats complying with ICC A117.1, including Section 802 (Assembly Areas), shall be provided in accordance with Sections 1108.2.2.1 through 1108.2.2.4 of this code. Required accessible wheelchair spaces and their companion seats as required in Section 1108.2.5 shall be delineated on the approved seating plans. Such spaces and seats which are unsold 1 day (24 hours) before the event shall be permitted to be released for sale to the public, including individuals without disabilities.

1108.2.2.1 General seating. Wheelchair spaces shall be provided in accordance with Table 1108.2.2.1.

**TABLE 1108.2.2.1
ACCESSIBLE WHEELCHAIR SPACES**

CAPACITY OF SEATING IN ASSEMBLY AREAS	MINIMUM REQUIRED NUMBER OF WHEELCHAIR SPACES
4 to 25	1
26 to 50	2
51 to 100	4
101 to 300	5
301 to 500	6
501 to 5,000	6, plus 1 for each 150, or fraction thereof, between 501 through 5,000
5,001 and over	36 plus 1 for each 200, or fraction thereof, over 5,000

1108.2.2.2 Luxury boxes, club boxes and suites. In each luxury box, club box and suite within arenas, stadiums and grandstands, wheelchair spaces shall be provided in accordance with Table 1108.2.2.1.

1108.2.2.3 Other boxes. In boxes other than those required to comply with Section 1108.2.2.2, the total number of wheelchair spaces provided shall be determined in accordance with Table 1108.2.2.1. Wheelchair spaces shall be located in not less than 20 percent of all boxes provided.

ACCESSIBILITY

1108.2.3 Companion seats. At least one companion seat complying with ICC A117.1, including Section 802.7 (Companion Seat), shall be provided for each wheelchair space required by Sections 1108.2.2.1 through 1108.2.2.3 of this code.

1108.2.4 Dispersion of wheelchair spaces in multilevel assembly seating areas. In multilevel assembly seating areas, wheelchair spaces shall be provided on the main floor level and on one of each two additional floor or mezzanine levels. Wheelchair spaces shall be provided in each luxury box, club box and suite within assembly facilities.

Exceptions:

1. In multilevel assembly seating areas utilized as place of religious worship where the second floor or mezzanine level contains 25 percent or less of the total seating capacity, wheelchair spaces shall be permitted to all be located on the main level.
2. In multilevel assembly seating areas where the second floor or mezzanine level provides 25 percent or less of the total seating capacity and 300 or fewer seats, all wheelchair spaces shall be permitted to be located on the main level.
3. Wheelchair spaces in team or player seating serving areas of sport activity are not required to be dispersed.

1108.2.5 Designated aisle seats. At least 5 percent, but not less than one, of the total number of aisle seats provided shall be designated aisle seats and shall be the aisle seats located closest to accessible routes, and shall comply with ICC A117.1, including Section 802.8 (Designated Aisle Seats).

Exception: Designated aisle seats are not required in team or player seating serving areas of sport activity.

1108.2.6 Lawn seating. Lawn seating areas and exterior overflow seating areas, where fixed seats are not provided, shall connect to an accessible route.

1108.2.7 Assistive listening systems. Each building, room or space used for assembly purposes where audible communications are integral to the use of the space, regardless of the occupancy load of such space, shall have an assistive listening system in compliance with ICC A117.1, including Section 706 (Assistive Listening Systems) and Appendix N of this code.

Exception: Other than in courtrooms, an assistive listening system is not required where there is no audio amplification system.

1108.2.7.1 Receivers. The number and type of receivers shall be provided for assistive listening systems in accordance with Table 1108.2.7.1 of this code.

Exceptions:

1. Where a building contains more than one room or space used for assembly purposes, the total number of required receivers shall be permitted to be calculated based on the total number of seats in the building, provided that all receivers are usable with all systems and if the rooms or spaces used for assembly purposes required to provide assistive listening are under one management.
2. Where all seats in a building, room or space used for assembly purposes are served by an induction loop assistive listening system, the minimum number of receivers required by Table 1108.2.7.1 of this code to be hearing-aid compatible shall not be required.

**TABLE 1108.2.7.1
RECEIVERS FOR ASSISTIVE LISTENING SYSTEMS**

CAPACITY OF SEATING IN ASSEMBLY AREAS	MINIMUM REQUIRED NUMBER OF RECEIVERS	MINIMUM NUMBER OF RECEIVERS TO BE HEARING-AID COMPATIBLE
50 or less	2	2
51 to 200	2, plus 1 per 25 seats over 50 seats*	2
201 to 500	2, plus 1 per 25 seats over 50 seats.*	1 per 4 receivers*

501 to 1,000	20, plus 1 per 33 seats over 500 seats*	1 per 4 receivers*
1,001 to 2,000	35, plus 1 per 50 seats over 1,000 seats*	1 per 4 receivers*
Over 2,000	55, plus 1 per 100 seats over 2,000 seats*	1 per 4 receivers*

NOTE: * = or fraction thereof

1108.2.7.2 Ticket windows. Where ticket windows are provided, at least one window at each location shall have an assistive listening system.

1108.2.7.3 Public address systems. Where stadiums, arenas and grandstands provide audible public announcements, they shall also provide equivalent text information regarding events and facilities in compliance with Sections 1108.2.7.3.1 and 1108.2.7.3.2.

1108.2.7.3.1 Prerecorded text messages. Where electronic signs are provided and have the capability to display prerecorded text messages containing information that is the same, or substantially equivalent, to information that is provided audibly, signs shall display text that is equivalent to audible announcements.

Exception: Announcements that cannot be prerecorded in advance of the event shall not be required to be displayed.

1108.2.7.3.2 Real-time messages. Where electronic signs are provided and have the capability to display real-time messages containing information that is the same, or substantially equivalent, to information that is provided audibly, signs shall display text that is equivalent to audible announcements.

1108.2.8 Performance areas. An accessible route shall directly connect the performance area to the assembly seating area where a circulation path directly connects a performance area to an assembly seating area. An accessible route shall be provided from performance areas to ancillary areas or facilities used by performers.

1108.2.9 Dining and drinking areas. In dining and drinking areas, all interior and exterior floor areas shall be accessible and be on an accessible route.

Exceptions:

1. An accessible route between accessible levels and stories above or below is not required where permitted by Section 1104.4, Exception 1.
2. An accessible route to dining and drinking areas in a mezzanine is not required, provided that the mezzanine contains less than 25 percent of the total combined area for dining and drinking and the same services, and decor are provided in the accessible area.
3. In sports facilities, tiered dining areas providing seating required to be accessible shall be required to have accessible routes serving at least 25 percent of the dining area, provided that accessible routes serve accessible seating and where each tier is provided with the same services and similar view.
4. Employee-only work areas shall comply with Sections 1103.2.2 and 1104.3.1.

1108.2.9.1 Dining surfaces. Where dining surfaces for the consumption of food or drink are provided, at least 10 percent of the total number of seating and standing spaces, but not less than one, of each type of dining surfaces shall be accessible and be distributed throughout the facility and located on a level accessed by an accessible route.

1108.2.9.2 Dining and drinking counters. Where seating is provided at dining or drinking counters, at least one 60 inch (1524 mm) long portion of the counter shall be provided with two accessible seating spaces. Such accessible seating space shall comply with Section 902 (Dining Surfaces and Work Surfaces) of ICC A117.1, and shall not be located within 40 inches (1016 mm) of either end of the counter, so as to provide individuals with disabilities with the same level of service and experience as that provided to others.

Exceptions:

1. Where the linear length of counter is 12 feet (3657.6 mm) or less, one accessible seating space shall be provided, at least 30 inches (762 mm) long, for each accessible seating space required by Section 1108.2.9.1 of this code. Such accessible seating space may be located anywhere along the counter.
2. In Group R-2 occupancies, one accessible seating space shall be provided, at least 30 inches (762 mm) long, for each accessible seating space required by Section 1108.2.9.1 of this code.

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1108.3 Self-service storage facilities. Self-service storage facilities shall provide accessible individual self-storage spaces in compliance with Section 1104 of this code and ICC A117.1, including Section 905 (Storage Facilities). The number of required self-storage spaces shall be in accordance with Table 1108.3 of this code.

**TABLE 1108.3
ACCESSIBLE SELF-SERVICE STORAGE FACILITIES**

TOTAL SPACES IN FACILITY	MINIMUM NUMBER OF REQUIRED ACCESSIBLE SPACES
1 to 200	5%, but not less than 1
Over 200	10, plus 2% of total number of units over 200

1108.3.1 Dispersion. Accessible individual self-service storage spaces shall be dispersed throughout the various classes of spaces provided. Where more classes of spaces are provided than the number of required accessible spaces, the number of accessible spaces shall not be required to exceed that required by Table 1108.3. Accessible spaces are permitted to be dispersed in a single building of a multibuilding facility.

1108.4 Judicial facilities. Judicial facilities shall comply with Sections 1108.4.1 and 1108.4.2 of this code.

1108.4.1 Courtrooms. Each courtroom shall be accessible and comply with ICC A117.1, including Section 807 (Courtrooms), and Sections 1108.4.1.1 through 1108.4.1.5 of this code.

1108.4.1.1 Jury box. A wheelchair space complying with ICC A117.1 shall be provided within the jury box.

Exception: Adjacent companion seating is not required.

1108.4.1.2 Gallery seating. Wheelchair spaces complying with ICC A117.1 shall be provided in accordance with Table 1108.2.2.1 of this code. Designated aisle seats shall be provided in accordance with Section 1108.2.5 of this code.

1108.4.1.3 Assistive listening systems. An assistive listening system must be provided. Receivers shall be provided for the assistive listening system in accordance with Section 1108.2.7.1 of this code.

1108.4.1.4 Employee work stations. The judge's bench, clerk's station, bailiff's station, deputy clerk's station and court reporter's station shall be located on an accessible route. The vertical access to elevated employee work stations within a courtroom is not required at the time of initial construction, provided a ramp, lift or elevator complying with ICC A117.1 can be installed without requiring reconfiguration or extension of the courtroom or extension of the electrical system.

1108.4.1.5 Other work stations. The litigant's and counsel stations, including the lectern, shall be accessible in accordance with ICC A117.1.

1108.4.2 Holding cells. Central holding cells and court-floor holding cells shall comply with Sections 1108.4.2.1 and 1108.4.2.2.

1108.4.2.1 Central holding cells. Where separate central holding cells are provided for adult males, juvenile males, adult females or juvenile females, one of each type shall be accessible. Where central holding cells are provided and are not separated by age or gender, at least one accessible cell shall be provided.

1108.4.2.2 Court-floor holding cells. Where separate court-floor holding cells are provided for adult males, juvenile males, adult females or juvenile females, each courtroom shall be served by one accessible cell of each type. Where court-floor holding cells are provided and are not separated by age or gender, courtrooms shall be served by at least one accessible cell. Accessible cells shall be permitted to serve more than one courtroom.

1108.5 Assembly areas without seating. Assembly areas without seating shall comply with Section 1108.2.7.

SECTION BC 1109 OTHER FEATURES AND FACILITIES

1109.1 General. Accessible building features and facilities shall be provided in accordance with Sections 1109.2 through 1109.15 of this code.

Exception: Type B+NYC and Type B units shall comply with Section 1107 of this code and ICC A117.1.

1109.2 Toilet and bathing rooms. Each toilet room and bathing room shall be accessible. Where a floor level is not required to be connected by an accessible route, the only toilet rooms or bathing rooms provided within the facility shall not be located on the inaccessible floor. Except as provided for in Sections 1109.2.2 and 1109.2.3 of this code, at least one of each type of fixture, element, control or dispenser in each accessible toilet room and bathing room shall be accessible.

Exceptions:

1. In nonresidential occupancies, for toilet rooms or bathing rooms accessed only through a private office, not for common or public use, and intended for use by a single occupant of such private office, any of the following alternatives are allowed:
 - 1.1. Doors are permitted to swing into the clear floor space provided the door swing can be reversed to meet the requirements in Section 603.2.2 (Door Swing) of ICC A117.1;
 - 1.2. The height requirements for the water closet in Section 604.4 (Height) of ICC A117.1 are not applicable;
 - 1.3. Grab bars are not required to be installed in a toilet room, provided that the reinforcement has been installed in the walls and located so as to permit the installation of such grab bars; and
 - 1.4. The requirement for height, knee and toe clearance shall not apply to a lavatory.
2. This section is not applicable to dwelling units, sleeping units and patient toilet and bathing rooms that are not required to be accessible by Section 1107 of this code.
3. Where multiple single-user toilet rooms or bathing rooms are clustered to be within sight of, or adjacent to one another at a single location, at least 50 percent, but not less than one room for each use at each cluster, shall be accessible. In Group R-2 occupancies, where multiple single-user toilet rooms or bathing rooms are clustered, all such rooms must comply with the design and construction requirements of the Fair Housing Act.
4. In other than Group R-2 occupancies, where no more than one urinal is provided in a toilet room or bathing room, the urinal is not required to be accessible.
5. Toilet rooms or bathing rooms that are part of critical care or intensive care patient sleeping rooms serving Accessible units are not required to be accessible.
6. Toilet rooms or bathing rooms designed for bariatrics patients are not required to comply with the toilet room and bathing room requirements in ICC A117.1. The sleeping units served by bariatrics toilet or bathing rooms shall not count toward the required number of Accessible sleeping units.
7. Where toilet facilities are primarily for children's use, required accessible water closets, toilet compartments and lavatories shall be permitted to comply with children's provision of ICC A117.1.
8. Where multiple single user portable toilet or bathing units are clustered at a single location, at least 5 percent, but not less than one of the toilet units and bathing units at each cluster shall be accessible. Accessible portable toilet units and bathing units shall be identified by the dynamic accessibility symbol complying with Section 1111.1 of this code.

1109.2.1 Family or assisted-use toilet and bathing rooms. In assembly and mercantile occupancies, an accessible family or assisted-use toilet room shall be provided where an aggregate of six or more male and female water closets is required. In buildings of mixed occupancy, only those water closets required for the assembly or mercantile occupancy shall be used to determine the family or assisted-use toilet room requirement. In recreational facilities where separate-sex bathing rooms are provided, an accessible family or assisted-use bathing room shall be provided. Fixtures located within family or assisted-use toilet and bathing rooms required by this section are permitted to be included in the number of fixtures required by the *New York City Plumbing Code* for either the male or female occupants.

Exception: Where each separate-sex bathing room has only one shower or bathtub fixture, a family or assisted-use bathing room is not required.

ACCESSIBILITY

1109.2.1.1 Standard. Family or assisted-use toilet and bathing rooms shall comply with Sections 1109.2.1.2 through 1109.2.1.7 of this code.

1109.2.1.2 Family or assisted-use toilet rooms. Family or assisted-use toilet rooms shall include only one water closet and only one lavatory. A family or assisted-use bathing room in accordance with Section 1109.2.1.3 shall be considered a family or assisted-use toilet room.

Exception: A urinal is permitted to be provided in addition to the water closet in a family or assisted-use toilet room.

1109.2.1.3 Family or assisted-use bathing rooms. Family or assisted-use bathing rooms shall include only one shower or bathtub fixture. Family or assisted-use bathing rooms shall also include one water closet and one lavatory. Where storage facilities are provided for separate-sex bathing rooms, accessible storage facilities complying with Section 1109.9 shall be provided for family or assisted-use bathing rooms.

1109.2.1.4 Location. Family or assisted-use toilet and bathing rooms shall be located on an accessible route. Family or assisted-use toilet rooms shall be located not more than one story above or below separate-sex toilet rooms. The accessible route from any separate-sex toilet room to a family or assisted-use toilet room shall not exceed 500 feet (152 m).

1109.2.1.5 Prohibited location. In passenger transportation facilities and airports, the accessible route from separate-sex toilet rooms to a family or assisted-use toilet room shall not pass through security checkpoints.

1109.2.1.6 Clear floor space. Where doors swing into a family or assisted-use toilet or bathing room, a clear floor space not less than 30 inches by 48 inches (762 mm by 1220 mm) shall be provided, within the room, beyond the area of the door swing.

1109.2.1.7 Privacy. Doors to family or assisted-use toilet and bathing rooms shall be securable from within the room.

1109.2.2 Water closet compartment. Where water closet compartments are provided in a toilet room or bathing room, at least 5 percent, but not less than one of the total number of compartments shall be wheelchair accessible. Where the combined total water closet compartments and urinals provided in a toilet room or bathing room is six or more, at least 5 percent, but not less than one of the total number of compartments shall be ambulatory accessible, provided in addition to the wheelchair-accessible compartment. Wheelchair-accessible and ambulatory-accessible compartments shall comply with ICC A117.1 including Sections 604.9 (Wheelchair Accessible Compartments) and 604.10 (Ambulatory Accessible Compartments).

1109.2.3 Lavatories. Where lavatories are provided, at least 5 percent, but not less than one, shall be accessible. Where an accessible lavatory is located within the accessible water closet compartment, at least one additional accessible lavatory shall be provided in the multicompartment toilet room outside the accessible water closet compartment. Where the total lavatories provided in a toilet room or bathing facility is six or more, at least one lavatory with enhanced reach ranges shall be provided.

1109.2.4 Diaper changing accommodations. In assembly and mercantile occupancies on each floor level containing a public toilet room, both male and female occupants shall have access to at least one safe, sanitary and convenient diaper changing station, deck, table or similar amenity, which shall comply with Section 603.5 (Diaper Changing Tables) of ICC A117.1.

1109.3 Sinks. Where sinks are provided, at least 5 percent but not less than one provided in accessible spaces shall comply with ICC A117.1, including Section 606 (Lavatories and Sinks).

Exception: Mop or service sinks are not required to be accessible.

1109.4 Kitchens, kitchenettes and wet bars. Where kitchen, kitchenettes and wet bars not located within dwelling or sleeping units, are provided in accessible spaces or rooms, they shall be accessible in accordance with ICC A117.1 including Section 804 (Kitchens and Kitchenettes), and Section 1109.9 of this code for storage.

1109.5 Drinking fountains. Where drinking fountains are provided on an exterior site, on a floor or within a secured area, the drinking fountains shall be provided in accordance with Sections 1109.5.1 and 1109.5.2.

1109.5.1 Minimum number. No fewer than two drinking fountains shall be provided. One drinking fountain shall comply with the requirements for people who use a wheelchair and one drinking fountain shall comply with the requirements for standing persons.

Exceptions:

1. A single drinking fountain with two separate spouts that complies with the requirements for people who use a wheelchair and standing persons shall be permitted to be substituted for two separate drinking fountains.
2. Where drinking fountains are primarily for children's use, drinking fountains for people using wheelchairs shall be permitted to comply with the children's provisions in ICC A117.1 and drinking fountains for standing children shall be permitted to provide the spout at 30 inches (762 mm) minimum above the floor.

1109.5.2 More than the minimum number. Where more than the minimum number of drinking fountains specified in Section 1109.5.1 is provided, 50 percent of the total number of drinking fountains provided shall comply with the requirements for people who use a wheelchair and 50 percent of the total number of drinking fountains provided shall comply with the requirements for standing persons.

Exceptions:

1. Where 50 percent of the drinking fountains yields a fraction, 50 percent shall be permitted to be rounded up or down, provided that the total number of drinking fountains complying with this section equals 100 percent of the drinking fountains.
2. Where drinking fountains are primarily for children's use, drinking fountains for people using wheelchairs shall be permitted to comply with the children's provisions in ICC A117.1 and drinking fountains for standing children shall be permitted to provide the spout at 30 inches (762 mm) minimum above the floor.

1109.5.3 Container faucets. Where a separate faucet designed for filling a container is provided at the drinking fountain pursuant to Section 410.1 of the *New York City Plumbing Code*, such container faucet shall comply with Section 606.4 of ICC A117.1.

1109.6 Saunas and steam rooms. Where provided, saunas and steam rooms shall be accessible. Such saunas and steam rooms shall comply with Section 612 of ICC A117.1.

Exception: Where saunas or steam rooms are clustered at a single location, at least 5 percent of the saunas and steam rooms, but not less than one, of each type in each cluster shall be accessible.

1109.7 Elevators. All passenger elevators on an accessible route shall be accessible and comply with ICC A117.1 and Chapter 30 of this code.

Exception: Section 407.4.6.2.2 (Arrangement) of ICC A117.1 shall not apply.

1109.7.1 Limited-Use/Limited-Application (LULA) elevators. LULA elevators shall comply with Section 408 (Limited-Use/Limited-Application Elevators) of ICC A117.1 and with Part 5.2 of ASME A17.1 as modified by Appendix K of this code, and shall be limited to a maximum rise of not more than 25 feet (7620 mm). In new construction, such LULA elevators shall be permitted:

1. To be a part of the required accessible route where either a wheelchair lift complying with Section 1109.7 is permitted or a private residence elevator complying with Section 409 (Private Residence Elevators) of ICC A117.1 is permitted;
2. To be part of the required accessible route in places of religious services; or
3. In multilevel buildings and facilities not required to have an accessible route pursuant to the exceptions in Section 1104.4.

1109.7.1.1 Prior code buildings. In prior code buildings, LULA elevators shall comply with Section 408 (Limited-use/Limited-Application Elevators) of ICC A117.1 and with Part 5.2 of ASME A17.1 as modified by Appendix K of this code. LULA elevators shall be limited to a maximum rise of not more than 25 feet (7620 mm) and shall be permitted to be a part of the required accessible route as follows:

1. In spaces complying with Section 1109.7.1 of this code where a LULA is permitted in new construction;
2. Where the total floor area of the entire building is less than 10,000 square feet (929 m²); or
3. Where it serves an individual occupancy of less than 10,000 square feet (929 m²) in buildings of 10,000 square feet (929 m²) or more.

ACCESSIBILITY

1109.7.2 Destination-oriented elevators. Where destination-oriented elevators are provided, hall call consoles shall comply with Sections 1109.7.2.1 through 1109.7.2.3. Responding elevator cars shall comply with Section 1109.7.2.5.

1109.7.2.1 Hall call console number and location. Hall call consoles shall be located and provided in a number complying with Section 1109.7.2.1.1 or 1109.7.2.1.2, as applicable. Where provided, hall call consoles shall be located on accessible routes connecting to the elevator landings they serve.

Exception: Where hall call consoles are an integral part of security barriers, at least one console for each type of use at each distinct location shall be located on an accessible route connecting to the elevator landings served by all such consoles.

1109.7.2.1.1 Transfer floors, sky lobbies and floors containing building entrances. Elevator landings on transfer floors, sky lobbies and floors containing building entrances shall provide at least one wall-mounted hall call console adjacent to each elevator hoistway entrance. When the accessibility function button is activated, the system shall assign an elevator car located to one side (left or right) of the hall call console to be the responding elevator.

1109.7.2.1.2 Other floors. Floors other than those subject to Section 1109.7.2.1.1 shall provide one hall call console for every five elevators, or fraction thereof, on each side of the elevator landing. The hall call console shall be located immediately adjacent to one or more elevator hoistway entrances. When the accessibility function button is activated, the system shall assign the elevator car located closest to one side (left or right) of the hall call console to be the responding elevator.

1109.7.2.2 Required features. Hall call consoles shall include the features specified in this section. Consoles shall not be flush with the surrounding surfaces and shall protrude or be recessed a minimum of $\frac{3}{4}$ inch (19 mm) and a maximum 4 inches (101.6 mm).

1109.7.2.2.1 Accessibility function button. Hall call consoles shall provide accessibility function buttons complying with Section 1109.7.2.2.1.

1109.7.2.2.1.1 Upon activation. The accessibility function button shall be programmed to activate the audio output required by Section 1109.7.2.2.2.

1109.7.2.2.1.2 Identification. Accessibility function buttons shall be visibly and tactilely identified. The visible identification shall consist of the International Symbol of Accessibility or the dynamic accessibility symbol and shall be a minimum height of $\frac{5}{8}$ inch (15.9 mm). The visible symbol shall contrast with its background, light-on-dark or dark-on-light. The tactile identification shall consist of three raised dots. All dots shall be the same size and shall have a base diameter of 0.059 inch (1.5 mm) minimum and 0.063 inch (1.6 mm) maximum. Dot height shall be 0.025 inch (0.6 mm) minimum and 0.037 inch (0.9 mm) maximum. The dots shall be spaced $\frac{1}{4}$ inch (6.4 mm) at base diameter, measured center to center, and shall be arranged in the form of an equilateral triangle with the vertex pointing up.

1109.7.2.2.2 Audio output. Audio output shall be provided for floor selection and responding elevator identification. Audio output shall be initiated upon activation of the accessibility function button and shall comply with Sections 1109.7.2.2.2.1 and 1109.7.2.2.2.

1109.7.2.2.2.1 Content. Audio output shall include all the information necessary to successfully call and locate the responding elevator without the use of a visual display including, but not limited to operating instructions, floor selection options, confirmation of floor selection, responding elevator car designation, directions to the responding elevator car and error messages.

1109.7.2.2.2.2 Delivery method and volume. Audio output shall be provided through a mechanism that does not require the use of private listening devices, and that is located at the hall call console. Audio output shall commence within one second of the activation of the accessibility function button. Audio output shall be synthesized speech or recorded or digitized human speech. Volume shall be a minimum of 10 dBA above ambient sound level, measured during peak occupancy, but shall not exceed 80 dB, measured horizontally 36 inches (914.4 mm) from the source. Audio output for floor selection shall commence at the hall call console used within one second of activation of the accessibility function button. Audio output for responding car identification shall commence when the elevator arrives and shall be repeated until the elevator doors begin to close.

1109.7.2.2.3 Visible display screen. Visible display screens, including touchscreens, shall be provided in accordance with this section.

1109.7.2.2.3.1 Contrast. Characters, numbers and symbols shall contrast with the background on which they are displayed at a ratio of 4.5:1 (relative illuminance). The background shall be solid and static.

Exception: Information unrelated to floor levels and their selection shall not be required to comply with Section 1109.7.2.2.3.1.

1109.7.2.2.3.2 Size. Characters, numbers and symbols shall be a minimum height of $\frac{5}{8}$ inch (15.9 mm).

1109.7.2.2.3.3 Duration. Elevator assignment characters and numbers shall be displayed for a minimum of five seconds.

1109.7.2.2.4 Floor selection controls. Hall call consoles shall provide a method of floor selection that does not require user vision. Input methods shall comply with Section 1109.7.2.2.4.1 or 1109.7.2.2.4.2.

1109.7.2.2.4.1 Numeric keypad. Numeric keypads shall be a minimum of $2\frac{3}{4}$ inches (69.9 mm) wide by 5 inches (127 mm) high and shall be arranged in a 12-key ascending telephone keypad layout. Individual keys shall be tactilely discernible, and the number five key shall be tactilely distinct from the other keys. Where the keypad provides an alphabetic overlay on numeric keys, the relationships between letters and digits shall conform to ITU-T Recommendation E.161.

1109.7.2.2.4.2 Step scanner. Step scanners shall consist of three horizontally arranged buttons. The center button shall serve as the “select” button and may also serve as the accessibility function button. The button to the right of the center button shall be the “up” button and the button to the left of the center button shall be the “down” button. When the “up” and “down” buttons are pressed and released, the scanner shall announce the next floor above and below, respectively. When the user releases the “up” or “down” button, the system shall pause to allow the user to press the “select” button. If the “select” button is not chosen, the system shall resume at the next floor in the sequence when the button is again depressed. In buildings with more than ten floor levels, when the “up” or “down” buttons are depressed and held for more than three seconds, the scanner shall present options for floor selection in groups of ten beginning with the next group of ten above or below the floor last announced. An interval of silence, one second minimum and two seconds maximum, shall be provided between such announcements.

Exception: Step scanners may consist of one button, where the application for construction document approval is submitted within six months after the date of enactment of this section. The button shall serve as the “select” button and may also serve as the accessibility function button.

1109.7.2.2.5 Tactile discernibility. Accessibility function buttons and floor selection controls shall be tactilely discernible and shall be raised above surrounding surfaces. When pressed, buttons shall provide mechanical motion to indicate activation. Where a step scanner complying with Section 1109.7.2.2.4.2 is provided, the “up” and “down” arrows shall include tactilely discernible “up” and “down” arrows. The “up” and “down” arrows shall be tactilely distinct from the tactile marking on the accessibility function button.

1109.7.2.3 Hall call console arrangement. Features of hall call consoles shall be arranged in accordance with Section 1109.7.2.3. Where an accessibility function button complying with Sections 1109.7.2.2.1 and 1109.7.2.3.1 also serves as the “select” button, the provisions of Section 1109.7.2.3.2 shall not apply.

1109.7.2.3.1 Accessibility function button. The accessibility function button shall be located at a height of 36 inches (914.4 mm) minimum and a maximum of 42 inches (1066.8 mm) above the finish floor and shall be nominally centered on the hall call console.

1109.7.2.3.2 Floor selection controls. Floor selection controls shall be located above the accessibility function button and shall be no higher than 48 inches (1220 mm) above the finish floor and shall be nominally centered on the console.

1109.7.2.3.3 Display screens. Where provided, display only screens shall be located above the floor selection controls.

1109.7.2.4 Instructions. Where hall call consoles are provided, written instructions on the proper use shall be posted in a conspicuous location, adjacent to such devices. The instructions shall include, but are not limited to, operating instructions, and console features.

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1109.7.2.5 Responding car. When an elevator car responds to a call following activation of the accessibility function button, it shall provide audio output complying with Section 1109.7.2.2.2. In addition, during travel, the responding car shall provide an in-car announcement of all floors on which it stops.

1109.8 Lifts. Platform (wheelchair) lifts shall not be a part of a required accessible route in new construction except as indicated in Items 1 through 10. Platform (wheelchair) lifts shall be installed in accordance with Section 410 (Platform Lifts) of ICC A117.1, ASME A18.1, and Chapter 30 of this code. Platform (wheelchair) lifts are permitted to be part of a required accessible route in new construction as follows:

1. An accessible route to a performing area and speaker platforms.
2. An accessible route to wheelchair spaces required to comply with the wheelchair space dispersion requirements of Sections 1108.2.2 through 1108.2.6.
3. An accessible route to spaces that are not open to the general public with an occupant load of not more than five.
4. An accessible route within an individual dwelling unit or sleeping unit required to be an Accessible unit, Type A unit or Type B unit.
5. An interior accessible route to jury boxes and witness stands; raised courtroom stations including judges' benches, clerks' stations, bailiffs' stations, deputy clerks' stations and court reporters' stations; and to depressed areas such as the well of the court.
6. An accessible route to load and unload areas serving amusement rides.
7. An accessible route to play components or soft contained play structures.
8. An accessible route to team or player seating areas serving areas of sport activity.
9. An accessible route instead of gangways serving recreational boating facilities and fishing piers and platforms.
10. An accessible route where existing exterior site constraints make the use of a ramp or elevator infeasible as determined by the commissioner pursuant to the rules of the department.

1109.8.1 Prior code buildings. In prior code buildings, platform (wheelchair) lifts installed in accordance with Section 410 (Platform Lifts) of ICC A117.1, ASME A18.1, and Chapter 30 of this code, shall be permitted to be a part of the required accessible route.

1109.9 Storage. Where fixed or built-in storage elements including but not limited to cabinets, coat hooks, shelves, medicine cabinets, lockers, closets and drawers are provided in required accessible spaces, at least 5 percent, but not less than one of each type shall be accessible.

1109.9.1 Equity. Accessible facilities and spaces shall be provided with the same storage elements as provided in the similar nonaccessible facilities and spaces.

1109.9.2 Shelving and display units. Self-service shelves and display units shall be located on an accessible route. Such shelving and display units shall not be required to comply with reach-range provisions.

1109.9.3 Cycle storage. Cycle storage shall comply with Section 905 (Storage Facilities) of ICC A117.1 and Sections 1109.9.3.1 through 1109.9.3.4 of this code.

1109.9.3.1 Accessible cycle storage. Where cycle storage is provided, 10 percent of the total number, but not less than one, shall be a minimum of 86 inches (2184.4 mm) long and 42 inches (1066.8 mm) wide to accommodate the storage of an accessible cycle.

1109.9.3.2 Accessible route. At least one accessible route shall connect to the accessible cycle storage area.

1109.9.3.3 Turning space. A turning space shall be provided and comply with Section 304 (Turning Space) of ICC A117.1.

1109.9.3.4 Loading area. A clear floor space shall be located on the long side of the accessible cycle storage and shall comply with Section 305 (Clear Floor Space) of ICC A117.1.

1109.10 Detectable warnings. Detectable warnings shall be provided where required in Sections 1109.10.1 through 1109.10.3.

1109.10.1 Detectable warnings at passenger transit platforms. Passenger transit platform edges bordering a drop-off and not protected by platform screens or guards shall have a detectable warning.

Exception: Detectable warnings are not required at bus stops.

1109.10.2 Detectable warnings at pools. The edges of reflecting pools and similar decorative pools without physical barriers, and in which occupants are not expected or permitted to engage in swimming, bathing, therapeutic or other physical activities, shall be provided with detectable warnings.

1109.10.3 Detectable warnings at curb ramps. A curb ramp shall have a detectable warning. The detectable warning shall extend the full width and a depth of 24 inches (609.2 mm) along the curb ramp. The curb ramp shall comply with Section 406 of ICC A117.1.

1109.11 Seating at tables, counters and work surfaces. Where seating or standing space at fixed or built-in tables, counters or work surfaces is provided in accessible spaces, at least 10 percent of the total number of seating and standing spaces, but not less than one of each type, shall be accessible.

Exception: Check-writing surfaces at check-out aisles not required to comply with Section 1109.12.2 are not required to be accessible.

1109.11.1 Dispersion. Accessible fixed or built-in seating at tables, counters or work surfaces shall be distributed throughout the space or facility containing such elements and located on a level accessed by an accessible route.

1109.11.2 Visiting areas. Visiting areas in judicial facilities and Group I-3 shall comply with Sections 1109.11.2.1 and 1109.11.2.2.

1109.11.2.1 Cubicles and counters. At least 5 percent, but not less than one of the cubicles, shall be accessible on both the visitor and detainee sides. Where counters are provided, at least one shall be accessible on both the visitor and detainee sides.

Exception: This requirement shall not apply to the detainee side of cubicles or counters at noncontact visiting areas not serving accessible unit holding cells.

1109.11.2.2 Partitions. Where solid partitions or security glazing separate visitors from detainees, at least one of each type of cubicle or counter partition shall be accessible.

1109.12 Service facilities. Service facilities shall provide for accessible features in accordance with Sections 1109.12.1 through 1109.12.5.

1109.12.1 Dressing, fitting and locker rooms. Where dressing rooms, fitting rooms or locker rooms are provided, at least 5 percent, but not less than one, of each type of use in each cluster provided shall be accessible.

1109.12.2 Check-out aisles. Where check-out aisles are provided, accessible check-out aisles shall be provided in accordance with Table 1109.12.2. Where check-out aisles serve different functions, accessible check-out aisles shall be provided in accordance with Table 1109.12.2 for each function. Where check-out aisles are dispersed throughout the building or facility, accessible check-out aisles shall also be dispersed. Traffic control devices, security devices and turnstiles located in accessible check-out aisles or lanes shall be accessible.

Exception: Where the public use area is under 5,000 square feet (464.5 m²), not more than one accessible check-out aisle shall be required.

**TABLE 1109.12.2
ACCESSIBLE CHECK-OUT AISLES**

TOTAL CHECK-OUT AISLES OF EACH FUNCTION	MINIMUM NUMBER OF ACCESSIBLE CHECK-OUT AISLES OF EACH FUNCTION
1 to 4	1
5 to 8	2
9 to 15	3
Over 15	3, plus 20% of additional aisles

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1109.12.3 Point of sale and service counters. Where counters are provided for sales or distribution of goods or services, at least one of each type provided shall be accessible. Where such counters are dispersed throughout the building or facility, accessible counters shall also be dispersed.

1109.12.4 Food service lines. Food service lines shall be accessible. Where self-service shelves are provided, at least 50 percent, but not less than one, of each type provided shall be accessible.

1109.12.5 Queue and waiting lines. Queue and waiting lines servicing accessible counters or check-out aisles shall be accessible.

1109.13 Controls, operating mechanisms and hardware. Controls, operating mechanisms and hardware intended for operation by the occupant, including switches that control lighting and ventilation and electrical convenience outlets, in accessible spaces, along accessible routes or as parts of accessible elements shall be accessible.

Exceptions:

1. Operable parts that are intended for use only by service or maintenance personnel shall not be required to be accessible.
2. Electrical or communication receptacles serving a dedicated use shall not be required to be accessible.
3. Where two or more outlets are provided in a kitchen above a length of countertop that is uninterrupted by a sink or appliance, one outlet shall not be required to be accessible.
4. Floor electrical receptacles shall not be required to be accessible.
5. HVAC diffusers shall not be required to be accessible.
6. Except for light switches, where redundant controls are provided for a single element, one control in each space shall not be required to be accessible.
7. Access doors or gates in barrier walls and fences protecting pools, spas and hot tubs shall be permitted to comply with Sections 3109.4 and 3109.5.
8. Electrical panelboards in Type B+NYC units and Type B units shall not be required to be accessible.
9. Within kitchens and bathrooms, lighting controls, electrical switches and receptacle outlets are permitted to be located over cabinets with counter tops 36 inches (914.4 mm) maximum in height and 25¹/₂ inches (647.7 mm) maximum in depth.

1109.13.1 Operable windows. Where operable windows are provided in rooms or spaces that are required to be accessible in accordance with Sections 1107.5.1, 1107.5.2, 1107.5.3, 1107.5.4, 1107.6.1.1, or 1107.6.1.4.1, at least one window in each room shall be accessible and each required operable window shall be accessible. Where operable windows are provided in Type B+NYC units in accordance with Section 1107.6.2, such windows shall comply with Section 1107.2.4.

Exception: Accessible windows are not required in bathrooms or kitchens unless otherwise required in Section 1107.2.4.

1109.14 Fuel-dispensing systems. Fuel-dispensing systems shall be accessible.

1109.15 Gaming machines and gaming tables. Five percent, but not less than one, of each type of gaming table provided shall be accessible and provided with a front approach. Five percent of gaming machines provided shall be accessible and provided with a front approach. Accessible gaming machines shall be distributed throughout the different types of gaming machines provided.

1109.16 Stairways. Stairways located alongside accessible routes connecting floor levels that are not connected by an elevator shall be designed and constructed to comply with ICC A117.1 and Chapter 10 of this code.

1109.17 Refuse disposal, refuse recyclable and refuse storage rooms. Refuse disposal, refuse recyclable and refuse storage rooms intended for common-use shall comply with this section. Each room must comply with Section 304 (Turning Space), Section 305 (Clear Floor Space), Section 309 (Operable Parts) and Section 404 (Doors and

Doorways) of ICC A117.1. The room door is permitted to swing into the room provided that a clear floor space not less than 30 inches by 48 inches (762 mm by 1220 mm) is provided within the room and beyond the arc of the door swing.

Exceptions:

1. An alternative design is permitted provided that all of the following conditions are met:
 - 1.1. The room shall be designed so that the wheelchair user can enter the room head on, and back out without turning or changing direction.
 - 1.2. An automatic door complying with Section 404.3 (Automatic Doors) of ICC A117.1 must be provided.
 - 1.3. The minimum doorway clear opening required by Section 404.3.1 must be increased to a minimum 36 inches (914.4 mm) in power-on and power-off mode.
 - 1.4. All controls, trash chutes, recycling bins and operating mechanisms intended for operation shall comply with Section 305 (Clear Floor Space) and Section 309 (Operable Parts) of ICC A117.1.
 - 1.5. An occupancy sensor shall be provided in the refuse room to detect the presence and the absence of occupants. Upon the detection of an occupant in the room, the door shall be maintained in the open position during the entire period of occupancy of the room. Upon the absence of an occupant in the room, the door shall automatically return to the closed position.
 - 1.6. The automatic door shall return to the closed position in the case of a power failure, upon the activation of the fire alarm systems or upon the activation of smoke detectors.
2. Controls for maintenance and service are not required to comply with this section.

SECTION BC 1110 RECREATIONAL FACILITIES

1110.1 General. Recreational facilities shall be provided with accessible features in accordance with Sections 1110.2 through 1110.4.

1110.2 Facilities serving Group R-2 and R-3 occupancies. Recreational facilities that serve Group R-2 and R-3 occupancies shall comply with Sections 1110.2.1 through 1110.2.3, as applicable.

1110.2.1 Facilities serving Accessible units. In Group R-2 occupancies where recreational facilities serve Accessible units, every recreational facility of each type serving Accessible units shall be accessible.

1110.2.2 Facilities serving Type A, Type B+NYC and Type B units in a single building. In Group R-2 and R-3 occupancies and where there are four or more dwelling units, where common recreational facilities serve a single building containing Type A, Type B+NYC units or Type B units, 25 percent, but not less than one, of each type of recreational facility shall be accessible. Every recreational facility of each type on a site shall be considered to determine the total number of each type that is required to be accessible.

1110.2.3 Facilities serving Type A, Type B+NYC and Type B units in multiple buildings. In Group R-2 and R-3 occupancies, where there are four or more dwelling units within a single structure, on a single site where multiple buildings containing Type A, Type B+NYC units or Type B units are served by common recreational facilities, 25 percent, but not less than one, of each type of recreational facility serving each building shall be accessible. The total number of each type of recreational facility that is required to be accessible shall be determined by considering every recreational facility of each type serving each building on the site.

1110.3 Other occupancies. Recreational facilities not falling within the purview of Section 1110.2 shall be accessible.

1110.4 Recreational facilities. Recreational facilities shall be accessible and shall be on an accessible route to the extent specified in this section.

1110.4.1 Area of sport activity. Each area of sport activity shall be on an accessible route and shall not be required to be accessible except as provided for in Sections 1110.4.2 through 1110.4.14.

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1110.4.2 Team or player seating. At least one wheelchair space shall be provided in team or player seating areas serving areas of sport activity.

Exception: Wheelchair spaces shall not be required in team or player seating areas serving bowling lanes that are not required to be accessible in accordance with Section 1110.4.3.

1110.4.3 Bowling lanes. An accessible route shall be provided to at least 5 percent, but not less than one, of each type of bowling lane.

1110.4.4 Court sports. In court sports, at least one accessible route shall directly connect both sides of the court.

1110.4.5 Raised boxing or wrestling rings. Raised boxing or wrestling rings are not required to be accessible or to be on an accessible route.

1110.4.6 Raised refereeing, judging and scoring areas. Raised structures used solely for refereeing, judging or scoring a sport are not required to be accessible or to be on an accessible route.

1110.4.7 Animal containment areas. Animal containment areas that are not within public use areas are not required to be accessible or to be on an accessible route.

1110.4.8 Amusement rides. Amusement rides that move persons through a fixed course within a defined area shall comply with Sections 1110.4.8.1 through 1110.4.8.3.

Exception: Mobile or portable amusement rides shall not be required to be accessible.

1110.4.8.1 Load and unload areas. Load and unload areas serving amusement rides shall be accessible and be on an accessible route. Where load and unload areas have more than one loading or unloading position, at least one loading and unloading position shall be on an accessible route.

1110.4.8.2 Wheelchair spaces, ride seats designed for transfer and transfer devices. Where amusement rides are in the load and unload position, the following shall be on an accessible route.

1. The position serving a wheelchair space.
2. Amusement ride seats designed for transfer.
3. Transfer devices.

1110.4.8.3 Minimum number. Amusement rides shall provide at least one wheelchair space, amusement ride seat designed for transfer or a transfer device.

Exceptions:

1. Amusement rides that are controlled or operated by the rider are not required to comply with this section.
2. Amusement rides designed primarily for children, where children are assisted on and off the ride by an adult, are not required to comply with this section.
3. Amusement rides that do not provide seats that are built-in or mechanically fastened shall not be required to comply with this section.

1110.4.9 Recreational boating facilities. Boat slips required to be accessible by Sections 1110.4.9.1 and 1110.4.9.2 and boarding piers at boat launch ramps required to be accessible by Section 1110.4.9.3 shall be on an accessible route.

1110.4.9.1 Boat slips. Accessible boat slips shall be provided in accordance with Table 1110.4.9.1. All units on the site shall be combined to determine the number of accessible boat slips required. Where the number of boat slips is not identified, each 40 feet (12 m) of boat slip edge provided along the perimeter of the pier shall be counted as one boat slip for the purpose of this section.

Exception: Boat slips not designed for embarking or disembarking are not required to be accessible or be on an accessible route.

**TABLE 1110.4.9.1
BOAT SLIPS**

TOTAL NUMBER OF BOAT SLIPS PROVIDED	MINIMUM NUMBER OF REQUIRED ACCESSIBLE BOAT SLIPS
1 to 25	1
26 to 50	2
51 to 100	3
101 to 150	4
151 to 300	5
301 to 400	6
401 to 500	7
501 to 600	8
601 to 700	9
701 to 800	10
801 to 900	11
901 to 1000	12
1001 and over	12, plus 1 for every 100, or fraction thereof, over 1,000

1110.4.9.2 Dispersion. Accessible boat slips shall be dispersed throughout the various types of boat slips provided. Where the minimum number of accessible boat slips has been met, no further dispersion shall be required.

1110.4.9.3 Boarding piers at boat launch ramps. Where boarding piers are provided at boat launch ramps, at least 5 percent, but not less than one, of the boarding piers shall be accessible.

1110.4.10 Exercise machines and equipment. At least one of each type of exercise machine and equipment shall be on an accessible route and shall be in compliance with Section 1104 (Exercise Machines and Equipment) of ICC A117.1.

1110.4.11 Fishing piers and platforms. Fishing piers and platforms shall be accessible and be located on an accessible route and shall be in compliance with Section 1105 (Fishing Piers and Platforms) of ICC A117.1.

1110.4.12 Miniature golf facilities. Miniature golf facilities shall be accessible and shall comply with Section 1107 (Miniature Golf Facilities) of ICC A117.1.

1110.4.13 Swimming pools, wading pools, hot tubs and spas. Swimming pools, wading pools, hot tubs and spas shall be accessible and be on an accessible route.

Exceptions:

1. Catch pools or a designated section of a pool used as a terminus for a water slide flume shall not be required to provide an accessible means of entry, provided that a portion of the catch pool edge is on an accessible route.
2. Where spas or hot tubs are provided in a cluster, at least 5 percent, but not less than one spa or hot tub in each cluster, shall be accessible and be on an accessible route.
3. Swimming pools, wading pools, spas and hot tubs that are required to be accessible by Sections 1110.2.2 and 1110.2.3 are not required to provide accessible means of entry into the water.

1110.4.13.1 Raised diving boards and diving platforms. Raised diving boards and diving platforms are not required to be accessible or to be on an accessible route.

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1110.4.13.2 Water slides. Water slides are not required to be accessible or to be on an accessible route.

1110.4.14 Shooting facilities with firing positions. Where shooting facilities with firing positions are designed and constructed at a site, at least 10 percent, but not less than one, of each type of firing position shall be accessible and be on an accessible route.

SECTION BC 1111 SIGNAGE

††† **1111.1 Signs.** Required accessible elements shall be identified by the dynamic accessibility symbol, in accordance with Figure 1111.1, at the following locations.

1. Accessible parking spaces required by Section 1106.1.
Exception: Where the total number of parking spaces provided is one, identification of the accessible parking space is not required.
2. Accessible parking spaces required by Section 1106.2.
Exception: In Group I-1, R-2 and R-3 occupancies, where parking spaces are assigned to specific dwelling units or sleeping units, identification of accessible parking spaces is not required.
3. Accessible passenger loading zones.
4. Accessible rooms where multiple single-occupant toilet rooms or bathing rooms are clustered at a single location pursuant to Section 1109.2, Exception 3. Where multiple single user portable toilet or bathing units are clustered at a single location pursuant to Section 1109.2, Exception 8.
5. Accessible entrances where not all entrances are accessible. The sign, where provided, shall include a contact telephone number or instructions to gain access if an otherwise accessible building entrance is locked at all times or locked when the building is otherwise open.
6. Accessible check-out aisles where not all aisles are accessible. The sign, where provided, shall be above the check-out aisle in the same location as the check-out aisle number or type of check-out identification.
7. Family or assisted-use toilet and bathing rooms.
8. Accessible dressing, fitting and locker rooms where not all such rooms are accessible.
9. Accessible areas of rescue assistance in accordance with Section 1009.9.
10. Exterior areas for assisted rescue in accordance with Section 1009.9.
11. In recreational facilities, lockers that are required to be accessible in accordance with Section 1109.9.
12. Accessible seating.
13. Accessible portable toilets.
14. Public telephones.
15. Refuse disposal and refuse storage rooms.



**FIGURE 1111.1
DYNAMIC ACCESSIBILITY SYMBOL**

***1111.2 Directional signage.** Directional signage indicating the route to the nearest like accessible element shall be provided at or in close proximity to the following locations, such that an individual with disabilities will not be required to retrace the approach route from the inaccessible element.

1. Inaccessible building entrances.
2. Inaccessible public toilets and bathing facilities.
3. Elevators not serving an accessible route.
4. At each separate-sex toilet and bathing room indicating the location of the nearest accessible family or assisted-use toilet and bathing room where provided in accordance with Section 1109.2.1 of this code.
5. At exits and exit stairways serving an accessible space, but not providing an approved accessible means of egress, signage shall be provided in accordance with Section 1009.10 of this code.
6. Where drinking fountains for people using wheelchairs and drinking fountains for standing persons are not located adjacent to each other, directional signage shall be provided indicating the location of the other drinking fountains.
7. At each entrance or egress to a building required to have an automatic door in accordance with Section 1105.1.8.

These directional signs shall include the dynamic accessibility symbol. Such signs shall comply with either Section 703.2, or Sections 703.3 and 703.4,[‡] of ICC A117.1.

**Section 1111.2 was amended by [Local Law 141 of 2023](#). This law has an effective date of January 1, 2024.*

1111.3 Other signs. Signage indicating special accessibility provisions shall be provided as follows:

1. Each assembly area required to comply with Section 1108.2.7 of this code shall provide a sign notifying patrons of the availability of assistive listening systems. The sign shall comply with ICC A117.1 requirements for visual characters and shall include the International Symbol of Access for Hearing Loss.

Exception: Where ticket offices or windows are provided, signs are not required at each assembly area provided that signs are displayed at each ticket office or window informing patrons of the availability of assistive listening systems.

2. At each door to an area of rescue assistance, an exterior area for assisted rescue, an egress stairway, exit passageway and exit discharge, signage shall be provided in accordance with Section 1013.4.

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3. At areas of rescue assistance, signage shall be provided in accordance with Section 1009.11.
4. At exterior areas for assisted rescue, signage shall be provided in accordance with Section 1009.11.
5. At two-way communication systems, signage shall be provided in accordance with Section 1009.8.2.
6. In interior exit stairways and ramps, floor level signage shall be provided in accordance with Section 1023.9.
7. At prior code buildings with one or more inaccessible entrances, signage stating that a portable ramp is available, if provided by the building, shall be provided at each inaccessible building entrance and shall contain the phone number to request such ramp. The use of a portable ramp by any building must comply with all applicable laws and any such ramp shall comply with Section 405 (Ramps) of ICC A117.1, except to the extent the commissioner has waived a requirement pursuant to section 28-313.3.1 of the *Administrative Code*. All signage posted pursuant to this section shall comply with Section 1110 of this code and be maintained in good condition. Nothing in this section shall be construed to authorize the provision of a portable ramp where such provision would not otherwise be lawful.
8. Signs identifying the type of access provided on amusement rides required to be accessible by Section 1110.4.8 of this code shall be provided at entries to queues and waiting lines. In addition, where accessible unload areas also serve as accessible load areas, signs indicating the location of the accessible load and unload areas shall be provided at entries to queues and waiting lines. These directional sign characters shall meet the visual character requirements in accordance with Section 703.2 (Visual Characters) of ICC A117.1.

1111.4 Variable message signs. Where provided in the locations in Sections 1111.4.1 and 1111.4.2 of this code, variable message signs shall comply with the variable message sign requirements of ICC A117.1.

1111.4.1 Transportation facilities. Where provided in transportation facilities, variable message signs conveying transportation-related information shall comply with Section 1111.4 of this code.

1111.4.2 Emergency shelters. Where provided in buildings that are designated as emergency shelters, variable message signs conveying emergency-related information shall comply with Section 1111.4 of this code.

Exception: Where equivalent information is provided in an audible manner, variable message signs are not required to comply with ICC A117.1.